

AGREEMENT

BY AND BETWEEN

THE WESTIN BONAVENTURE HOTEL & SUITES, LOS ANGELES

AND

UNITE HERE! LOCAL 11

EFFECTIVE DECEMBER 1, 2018 THROUGH JUNE 30, 2023

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COLLECTIVE BARGAINING AGREEMENT

This Collective Bargaining Agreement ("Agreement"), made and entered into as of December 1, 2018, by and between Interstate Hotels, LLC as agent for Today's IV, Inc. d/b/a The Westin Bonaventure Hotel & Suites, Los Angeles (the "Employer") and UNITE HERE! Local 11 (the "Union").

Section 1. Recognition of the Union as Bargaining Agent

- A. Employer agrees to recognize the Union as the sole bargaining agent for all of its employees in those classifications which are listed in the attached wage scale marked Schedule A and hereby made a part hereof, whether such employees are Union or non-union, permanent or temporary, part-time or full-time. This section also covers and applies to all persons in welfare-to-work type programs.
- B. This Agreement shall also cover all employees employed in the classifications covered by this Agreement, or in classifications called by different names when performing similar duties, in any Property which after the effective date of and during the term of this Agreement becomes operated by the Employer. Property, as used herein, is defined in Paragraph 3 of the attached Memorandum of Understanding on Growth ("MOU"). Coverage of such a Property is conditioned upon and shall occur when the Union demonstrates that it has been authorized by a majority of the employees in the operation to represent them for the purposes of collective bargaining. The methods by which such authorizations may be obtained, and majority support verified are set forth in the MOU.
- C. In the event of reorganization of the Union currently covered hereunder, this Agreement will be amended to substitute the new names and/or local union numbers as parties hereto.

Section 2. Union Membership of Employees and Conditions of Employment

- A. **Union Security.** In Schedule A there are listed classifications of employees and, under the conditions as set forth herein, the Employer agrees to maintain in employment in such classifications only persons who are members in good standing with the Union. All such employees as a condition of continued employment, shall become members of the Union within thirty-one (31) days from the date of their employment or the date of this Agreement, whichever is later, and thereafter shall remain members in good standing with the Union. For the purpose of determining membership in good standing, it is agreed that this shall be interpreted to mean the payment of initiation fees and regular monthly dues. The Employer agrees to discharge any employee who fails to become and remain a Union member in good standing in accordance with the above provisions. Such

discharge shall be effective within seven (7) days after Employer's receipt of the Union's written demand for such discharge. It is understood that the above thirty-one (31) days' grace period does not apply to new hires who are already members of the Union.

- B. **Neutrality.** In the event that the hotel becomes subject to a state or federal right to work law, the Employer agrees to remain neutral with respect to any of its employees' or prospective employees' decisions regarding membership in or support for the Union. The Employer, its supervisors, managers and other agents will not take any action or make any statement that directly or indirectly states or implies any opposition to Union membership or to the selection or maintenance of the Union as the employees' collective bargaining representative, and will not encourage or assist employees either directly or through third parties to terminate union membership, revoke dues checkoff authorization or invoke any right to reduce financial support to the Union. The Employer will inform any employee who inquires about Union membership or support that the employee should contact the Union.
- C. **Vacancies and Banquet Extras.** The Union shall establish and maintain open and non-discriminatory employment lists for employment of workers covered by this Agreement. The Employer shall notify the Union in writing of all vacancies. The Union agrees to the best of its ability to supply to the Employer competent help at all times. Notwithstanding any past practice, memoranda of understanding, or other agreements, the Employer may create and maintain a list of 32 regular banquet servers who are scheduled by rotation. For larger events the Employer may call upon extras from its own pool of up to 25 banquet extras drawn from the Union roll-call who (1) have satisfactorily completed an Employer training course, and (2) consistently meet the Employer's service standards.
- D. **Union Referrals.** Applicants for employment shall be referred by the Union to the Employer on a non-discriminatory basis and such referrals shall not be based on or in any way affected by Union membership or lack of such membership or by Union By-Laws, rules, regulations, constitutional provisions or any other aspect or obligation of Union membership, policies, or requirements. It is understood and agreed that the Employer prefers experienced employees and therefore preference on referral shall be given to persons who have had at least two thousand (2000) hours of experience in the industry, in the area covered by this Agreement within the five-year period preceding the date of this Agreement.
- E. **Employer Selection.** The Employer shall be the sole judge of the qualifications of all applicants and retains the right to reject any applicant for employment referred by the Union.

- F. **Other Sources.** In the event the Union is unable to supply competent employees that are satisfactory to the Employer, the Employer shall then have the right to employ help from any source at the regular wage rates herein specified. Any persons so employed shall be advised at the time of employment that the establishment is operating under a Union contract, and any such employees shall be referred to the Union office within seven (7) days for registration as being employed. The Union agrees to accept such persons for membership upon terms and qualifications not more burdensome than those applicable at such time to other applicants of the Union.
- G. **Non-Discrimination.** There shall be no discrimination by the Employer or the Union of any kind against any employee pertaining to hiring, promotions, discharge, pay, benefits, Union membership or benefits and rights, or all other aspects of employment because of race, religious creed, religious observance, color, age, sex, sexual orientation, gender identity, gender expression, national origin, ancestry, marital status, medical conditions as defined by applicable state or federal law, disability, genetic information or predisposition, military service, military and veteran status, pregnancy, child birth and related medical conditions, or any other classification protected by federal, state, or local laws or ordinances. The parties will cooperate to ensure all employees are treated with dignity and respect.
- H. **Posting.** A copy of this Union Security and Hiring Procedure shall be posted in the office of the Union and in the establishment of the Employer where notices to employees and applications for employment are customarily posted.
- I. **Dispute Resolution.** Should any dispute arise concerning the rights of the Employer, the Union, employees, or applicants for employment under this Section 2, the dispute shall be submitted to and settled by the procedure specified in Section 17 of this Agreement. Decisions reached under this grievance procedure shall be final and binding on the Employer, Union, employees, or applicants for employment.
- J. **Appropriate Unit.** The Employer and the Union agree that all employees working under classifications listed in Schedule "A" are properly within the bargaining unit.
- K. **Dues Deduction.** The Employer agrees to deduct from the first paycheck of each calendar month regular dues, but not fines or assessments, and to deposit the same directly into the Union's bank account between the first and tenth of the following month, and to simultaneously send a report to the Union by email with the name, social security number, and amount deducted for each employee; provided, however, that properly worded check-off authorization cards will be submitted by the Union to the Employer

for advance approval, and provided further that properly executed forms as approved by the Employer, authorizing said deductions will only be made after all other deductions as required by Federal and State laws. Subject to the same conditions, initiation fees and/or reinstatement fees will be deducted on the basis of 50% from the first pay period after the authorization is signed, and the remaining 50% from the second pay period. Such check-off authorizations shall be irrevocable for one (1) year following the date upon which it is signed; if the employee does not revoke the authorization at that time, it shall be considered automatically renewed for an additional one (1) year period.

The Union shall indemnify the Employer against any and all claims, demands, suits or other forms of liability and costs therefrom that might arise out of or by reason of action taken by the Employer for the purposes of complying with the check-off provisions.

Any unsettled dispute arising in connection with the operation of the check-off shall be handled in accordance with the grievance provisions section of this Agreement.

The Health and Welfare Trust Fund Administrative Office will be instructed to provide the Union with a copy of the Employer's monthly report.

- L. **Voluntary Political Deduction.** The Employer agrees to honor voluntary political contribution deduction authorizations from its employees, in the following form:

I hereby authorize the Employer to deduct from my pay the sum of \$___per month and to forward that amount to the UNITE HERE TIP-To Insure Progress. This authorization is signed voluntarily and with the understanding that the UNITE HERE TIP-To Insure Progress will use this money to make political contributions and expenditures in connection with Federal elections. I am aware of my right to refuse to sign this authorization without reprisal. This authorization may be revoked by mailing notices of revocation by United States Registered or Certified Mail, Return Receipt Requested, to the Treasurer, UNITE HERE TIP-To Insure Progress, 275 7th Avenue, New York, NY 10001-6708, and to the Employer.

The political contribution deduction shall be made once each month during which an employee who has performed compensated service has in effect a voluntarily executed political contribution deduction authorization. The money shall be remitted within thirty (30) days after the last day of the preceding month to the UNITE HERE TIP-To Insure Progress, 275 7th Avenue, New York, NY 10001-6708, accompanied by a form stating the

name and Social Security number of each employee for whom a deduction has been made, and the amount deducted. A copy of said form shall be sent to UNITE HERE! Local 11 each month via email.

The Union shall indemnify, defend, and save the Employer harmless against any and all claims, demands, suits or other forms of liability that shall arise out of or by reason of action taken by the Employer in reliance upon payroll deduction authorization cards submitted to the Employer.

- M. **Orientation Meetings.** Upon request by the Union, one (1) Union representative shall be afforded the opportunity to meet with new hires for thirty (30) minutes, during the new employee orientation session, or within the first thirty (30) days of employment if the Employer does not hold an orientation session within that time frame, without Employer representatives present. The Union shall provide advance written notice of any Union representatives designated to conduct such session. New hires participating in the session will be on paid time. The Union shall not make any disparaging comments about the Employer during such sessions.
- N. **Employee Information.** In order to permit the Union to carry out its responsibilities properly and efficiently, the Employer shall furnish the Union with a quarterly list of all employees in the bargaining unit, including each employee's name, social security number, address, telephone number, email address, department, classification, date of hire, and wage rate. This report shall be sent in Excel format via email.
- O. **Translation and Printing.** The Employer and the Union will jointly pay for the translation of this Agreement into Spanish and the publication of five hundred (500) copies of the Agreement in English and Spanish for bargaining unit employees, with each party covering fifty percent (50%) of the cost. In the event of a conflict between the English and Spanish versions of this Agreement, the English version shall prevail.

Section 3. Nature of Liabilities and Obligations of Employer Under this Agreement

- A. No employee covered by this Agreement shall be compelled or allowed to enter into any individual contract or agreement with the Employer concerning the conditions of employment, varying the conditions of employment contained herein.
- B. No work customarily performed by employees covered by this Agreement may be subcontracted, transferred, or assigned by any means to any person, firm, or entity; provided, however, that nothing provided herein may be interpreted to restrict the ability of the Owner to change operators in accordance with the provisions of subsection 3(E).

This subcontracting provision does not prohibit the Employer from purchasing pre-packaged or pre-prepared food. This exception is not intended to allow overall meal preparation off the premises.

This subcontracting provision does not prohibit the Employer from contracting-out for:

1. Work that requires major capital investment for equipment and would not result in regular, ongoing work; or
2. Specialized functions for which bargaining unit employees cannot be easily trained and which require employees with highly specialized expertise and which would not result in regular, ongoing work; or
3. Cleaning services currently being subcontracted out unless it is the subject of a dispute or grievance as of the signing of this Agreement.
4. Laundry operations only as done in the past or in cases of inoperative laundry equipment or emergencies, provided all bargaining unit members have been offered an opportunity to perform available work, and provided further that when work is subcontracted as a result of inoperative equipment, the Employer will make reasonable efforts to repair or replace the equipment as soon as practicable. The parties understand this section shall not be used to assign work to non-laundry employees for more than one day unless the Employer has first offered available work to the laundry employees and the Employer shall have notified the Union's hiring hall that work is available.

These four exceptions are not designed to permit the contracting-out of the night cleaners.

The application of these four exceptions shall not result in layoff or reduction of hours of bargaining unit employees except through attrition in accordance with Section 16.

- C. Employees covered by this Agreement frequently interact both with other employees of the Employer and employees of contractors engaged in the alteration, painting, or repair of the hotel. This interaction includes but is not limited to preparing rooms and common areas for construction work and cleaning work areas during and immediately after the completion of construction work. This construction work is done by the Employer with its own employees as well as by contractors, or by a combination of both its own employees and contractors' employees. The Employer and the Union agree that alterations, painting, and repair of the hotel should ideally be

performed by employees who are covered by a collective bargaining agreement. Accordingly, where the Employer receives bids from both union and non-union contractors, and where all other factors under consideration by the Employer are equal, the Employer shall select a contractor whose employees are covered by a collective bargaining agreement.

- D. In the event that the Employer voluntarily sells, transfers, or assigns all its right, title, or interest in the operation covered by this Agreement or substantially all of the assets used in such operation (or any part thereof in a permanent transaction), or in the event there is a change in the form of ownership of the Employer, the Employer shall give the Union reasonable advance notice thereof in writing, and the Employer further agrees that as a condition to any such voluntary sale, assignment, or transfer, the Employer will obtain from its successor or successors in interest a written assumption of this Agreement including a promise that the successor or successors shall retain the employees employed in each of the units represented by the Union (subject to changes in the level of staffing) and retain facially valid I-9 forms maintained by its predecessor in interest without re-verifying the work authorization status of any employee for whom Employer provides to the successor a facially valid I-9 form, and furnish a copy of the written assumption agreement to the Union, in which event the assignor shall be relieved of its obligations hereunder to the extent that the assignor has fully transferred its right, title, or interest. The foregoing provisions concerning I-9 forms shall not apply where no such forms are required by domestic law, or where applicable law mandates the successor, without regard to any voluntary election by the successor, to require bargaining unit employees to complete new I-9 forms, and shall not prohibit the successor(s) from taking reasonable actions and/or requiring employees to take reasonable actions to correct material omissions and errors in I-9 forms received from a predecessor. Nothing in this provision shall be construed to require the Employer or any successor to employ individuals who are not authorized to work in the United States, or to prohibit the Employer or any successor from conducting an E-Verify review of I-9 forms received from a predecessor if such E-Verify review is mandated pursuant to the Employer's or successor's status as a federal government contractor or by other provision of law.
- E. This subsection 3(E) applies when separate, unaffiliated entities own and operate the hotel. It is recognized that the Owner of the hotel and the Union have a common interest in protecting work opportunities for all employees covered by this Agreement. It is also recognized that the Owner needs the flexibility to select from time to time the operating entity best suited to realization of the Owner's business objectives, and that this can be accomplished without injury to the interests of the employees in the bargaining unit. Therefore, Owner shall ensure that while Owner owns the hotel, the terms of any future operating agreement or management contract

covering the hotel shall specifically require a written assumption of this Agreement, including a promise that the successor or successors shall retain the employees employed in each of the units represented by the Union (subject to changes in the level of staffing) and Owner shall furnish a copy thereof to the Union. Further, should Owner or a direct or indirect subsidiary of Owner sell or otherwise transfer a controlling ownership interest in all or any part of the business of the hotel (in one or a series of related stock or asset transactions), or in the event there is a change in the form of ownership of the hotel or assets to which Owner is a party, Owner shall as a condition to such transaction obtain from the other party(ies) to the transaction who will take thereby any interest in the business or the assets used in the business a written assumption of the obligations of the Owner as set forth in this subsection 3(E), and a binding obligation that any operator it retains to operate the hotel will assume and be bound by this Agreement. Owner will furnish a copy of the assumptions delineated in the previous sentence to the Union. Owner further agrees that, to the extent it has such documents, as a condition of any such sale, transfer, or assignment, it will transfer to the successor(s) completed Forms I-9 for all bargaining unit employees, obtain from its successor(s) a written agreement that the successor(s) will maintain these Forms I-9 in lieu of completing new Forms I-9 for bargaining unit employees ("I-9 Agreement") and furnish a copy of the I-9 Agreement (but not copies of the I-9s themselves) to the Union not less than 30 calendar days prior to the closing of the transaction. The foregoing obligation shall not apply where no such forms are required by domestic law or where applicable law mandates the successor, without regard to any voluntary election by the successor, to require bargaining unit employees to complete new I-9 forms, and shall not prohibit the successor(s) from taking reasonable actions and/or requiring employees to take reasonable actions to correct material omissions and errors in I-9 forms received from a predecessor. Nothing in this provision shall be construed to require the Employer or any successor to employ individuals who are not authorized to work in the United States, or to prohibit the Employer or any successor from conducting an E-Verify review of I-9 forms received from a predecessor if such E-Verify review is mandated pursuant to the Employer's or successor's status as a federal government contractor or by other provision of law.

- F. The Employer shall not divide or diminish the scope of the bargaining unit by contracting for the use of any space within the hotel and within the control of the Employer for operations of any sort customarily performed by bargaining unit employees, including but not limited to food and beverage outlets; any such contracting may be done by the Employer only in accordance with the terms of this Agreement, including those concerning subcontracting, and this provision does not alter or reduce to any extent the Employer's rights under such provisions. Nothing in this subsection shall preclude an owner or any other party in interest from contracting for the use

of space that is not controlled or managed by the Employer as an existing part of the hotel operation, or preclude the continued leasing or future leasing, whether to the current or any other lessee, of any space currently leased in the hotel, or preclude the leasing of space currently controlled by the Employer to a different third party subject to the provisions of part (ii) in the following sentence. The Owner shall not require the Employer to relinquish any part of the hotel premises managed by the Employer except for (i) use in operations that would not be covered by this Agreement if they were conducted by the Employer or (ii) use in operations that would be covered by this Agreement provided that the economic package paid to or on behalf of employees performing work covered by this Agreement shall not be less than the economic package paid to or on behalf of employees under this Agreement and shall include an employer-paid defined benefit pension plan. The economic package shall include all emoluments of employment having definite and quantifiable economic value, including but not limited to wages (including premiums, bonuses and incentives, guaranteed workdays or workweeks, health and hospitalization benefits, retirement plan participation, paid vacation, paid holidays, and paid time off). Nothing in this Section 3 is intended to expand or otherwise add to the existing bargaining unit covered by the Labor Agreement.

- G. If the Employer is operating in receivership, or through a creditor manager or in case of liquidation, bankruptcy, or sale of his or her business, all wages, vacation pay accumulated, and all health and welfare contributions become due and must be paid at once. In each case, to the extent permitted by law, the Union reserves the right to demand payment of wages and contributions as mentioned above for all members employed, and the Employer shall immediately comply with such demands.
- H. If ownership of the hotel is transferred in an involuntary transaction, the Employer shall deliver to the Union copies of the entire contents of the personnel files (excluding attorney-client privileged documents, investigatory materials and medical records) of all bargaining unit employees except those files which are delivered to the transferee because it has employed or has made a legally-binding commitment to employ the employees to whom the files pertain.
- I. The provisions of Section 18 prohibiting strikes shall be suspended upon the initiation of any proceeding to authorize the sale of the hotel in an action filed under Chapters 7 or 11 of the United States Bankruptcy Code with respect to the hotel or with respect to a business segment that includes the Hotel, or by delivery to the Employer of a notice of sale in foreclosure or other similar notice that the hotel will be taken in a transaction that is not voluntary by the Employer, and shall remain suspended unless and until the condition that caused the suspension has been resolved completely or the Union delivers a written waiver of the suspension. The Employer shall

deliver written notice to the Union of a filing or notice covered by this subsection 3(I) within five days after the Employer files or receives the petition or notice, and shall include a copy of the petition or notice. Notwithstanding any provisions of this subsection 3(I) to the contrary, the provisions of this Agreement prohibiting strikes shall remain in full force and effect if (i) in the case of the initiation of any proceeding to authorize the sale of the hotel in an action filed under the applicable bankruptcy laws, the assumption of the obligations of the owner under this Agreement (as defined hereinafter) is made an express condition of such sale, or (ii) in the case of a notice of sale in foreclosure or similar notice that the hotel will be taken in a transaction that is not voluntary by the Employer, the lender or other entity causing the issuance of the notice has agreed in writing in an instrument making the Union an express third party beneficiary of the promise, that if it retains ownership of the hotel, to assume the obligations of the Owner under this Agreement (as defined hereinafter), or if the hotel is sold or transferred, that it will require as a condition for such sale or transfer, that any purchaser or transferee to assume the obligations of the Owner under this Agreement (as defined hereinafter). For purposes of this subsection 3(I), the "obligations of the Owner" shall include (i) the obligation of the purchaser or transferee (the "New Owner") to assume this Agreement and to retain the then-current bargaining unit employees, both of which as and to the extent required by subsection 3(D) above, or (ii) if the New Owner is not the operator of the hotel, either directly or through a wholly owned or controlled affiliate, the obligation not to hire a replacement managing entity unless that entity agrees to assume this Agreement and to retain the then-current bargaining unit employees, both of which as and to the extent required by subsection 3(E) above.

- J. The Union shall not be required to post a bond or other security as a condition to obtaining an injunction or other equitable relief against a violation or threatened violation of subsections 3(D) through 3(K).
- K. The obligations of subsections 3(D) through 3(K) shall expire one (1) year following the expiration of this Agreement. During this one (1) year period, the obligations of this Section 3 shall be enforced through the procedures for arbitration provided in Section 17 and the Union shall retain the power to seek injunctive relief through judicial action as provided in this Section 3.

Section 4. Investigation by Authorized Union Representatives

- A. Properly authorized representatives of the Union shall be permitted to investigate the standing of all employees and to investigate conditions and to see that the terms of this Agreement are being observed. Said representatives shall be permitted to conduct such investigations within the premises of the Employer, provided, however, that no interview shall be held during rush hours. The Union representatives shall advise the human resources office when they come on the Employer's property.

- B. The Employer shall provide the Union with a bulletin board, of reasonable size in a reasonably prominent area of the employee cafeteria, or at another location(s) if mutually agreed, for posting of notices and other material by the Union, which shall not be defamatory toward the Employer or supervisors. The Employer shall also provide space affording privacy to Union Business Representatives and Union Shop Stewards, upon request, to meet with employees for the purpose of investigating and processing grievances and investigating conditions and seeing that the terms of this Agreement are being observed.
- C. All employees shall be permitted to wear one official Union button while on duty. The Union will upon request consult with the Employer regarding any problems presented by the size or style of Union buttons and will make good-faith efforts to remedy such problems.

Section 5. Termination of Employment and Payment of Wages of Terminated Employees

- A. In the event of the termination of employment by the Employer, the employee affected shall be notified by the Employer, not later than the time of departure of the employee from the premises of the Employer at the end of the last shift of the employee. If the Employer fails to notify the employee in this manner and the said employee reports for work on his or her next regular workday and is not placed at work, then and in that event the said employee shall receive one day's pay for so reporting for work. Notification of termination of employment shall be given by the Employer and shall not be the responsibility of the Union. If an Employer or its representative requests an individual to report for work and the said individual reports for work at the proper time but is not permitted to work by the Employer, then the said individual shall receive one day's pay from the Employer for reporting to work. This provision shall not apply to an individual who reports to work in a condition which obviously prevents the proper performance of the normal duties of the individual. In the event of termination of employment by the Employer the employee thus affected shall be paid all wages due him or her at the time his or her employment is terminated.
- B. No employee shall be discharged for proper Union activity.
- C. No employee who has completed his or her ninety (90) day introductory period, shall be suspended or discharged without just cause.

Section 6. Vacations, Death in the Family, Leaves of Absence, PTO

A. All employees covered by this Agreement shall receive annual vacations with pay as follows, for continuous service of:

- 1 year one week
- 2 to 5 years two weeks
- 6 years two and one-fifth weeks
- 7 years three weeks
- 17 years four weeks

1. The amount of vacation pay for each anniversary year ending shall be calculated as follows:

(a) **Determine Average Hours Worked:**

Average Hours Worked Per Week =

$$\frac{\text{Number of Hours Worked During the Anniversary Year}}{52}$$

The “number of hours worked during the anniversary year” shall include all straight-time hours worked or paid for (including holiday hours whether worked or not) plus all overtime hours worked in the preceding year ending on the anniversary date of the employee’s employment.

(b) **Multiply Average Hours Worked by Current Wage Rate:**

For all employees, the amount of vacation pay shall be based on the current wage rate at the time the vacation is taken (excluding service charge or gratuities). For extra employees, banquet servers, and captains, vacation pay will be granted only to employees who work 450 or more hours during the preceding year.

Employees whose hourly wage has decreased shall be paid their vacation at the higher rate of pay if they have worked at least six (6) months of the preceding anniversary year at the higher rate of pay.

Employees in tipped classifications (servers, bellpersons, doorpersons, head servers, and captains) shall be paid two times (2x) their straight-time hourly rate, except in cases where the employee resigns, retires, or is terminated, or if the employee requests to be paid out their vacation pay in lieu of

actually taking their vacation time and the Employer agrees to same.

2. Any employee who does not receive the vacation to which he or she is entitled shall receive pay in lieu thereof.
 3. Vacation pay shall be paid in a separate check except in cases of terminated employees.
- B. After one year's service, in the event of termination of employment after six consecutive months' service since the last annual vacation eligibility date, the Employer shall pay to such employee prorated vacation pay based upon actual service performed computed as follows: Pay at the rate of one-twelfth (1/12) of two weeks for each month worked up to a maximum of two regular workweeks; provided further that after five years' service pay shall be computed on the following basis: After five years one twelfth (1/12) of two and one-fifths weeks' pay for each month worked; after six years, one-twelfth (1/12) of three weeks' pay for each month worked; after sixteen years, one-twelfth (1/12) of four weeks' pay for each month worked.
- C. "Continuous service" shall mean any regular employee who has been continuously on the payroll as working for a particular Employer or at a particular establishment for the required time. Any break in service, i.e., break in employment not in excess of 90 days, shall not constitute a break in continuous service, except if the absence is due to on-the-job injury covered by workers' compensation insurance, then a break in employment not in excess of 15 months shall not constitute a break in continuous service. However, none of the above absences shall be counted as time worked for vacation purposes.
- D. The Employer shall prepare vacation schedules for eligible employees as far ahead as practicable to the end that employees have adequate notice of their vacation period. The Employer shall have the option of giving employees vacation pay on the anniversary date of their employment or on the payday immediately preceding the time their vacation is taken.
- E. The obligations of the Employer under this provision shall be and are binding upon the successor and assigns of the Employer during the term of this Agreement.
- F. Each employee covered by this Agreement shall be entitled to receive time off in the event of a death in the employee's immediate family. For purposes of this provision, immediate family shall be defined as the employee's mother, father, spouse, or child. Employees shall, upon request, be granted such time off without loss of pay as is necessary to make arrangements for the funeral and for attendance at the funeral, not to exceed three (3)

regularly scheduled working days. In the event of a death which requires the employee to travel outside California, the employee shall upon request be entitled to up to five (5) regularly scheduled working days off, of which three (3) shall be paid and up to two (2) unpaid. In the event of a death which requires the employee to travel outside the United States, the employee shall upon request be entitled to up to ten (10) regularly scheduled working days off, of which three (3) shall be paid and up to seven (7) unpaid. The Employer may make reasonable efforts to inquire about or establish proof of death and/or relationship in specific cases, but shall not do so routinely.

G. Leaves of Absence for Personal, FMLA, and Similar Reasons

1. Upon written request made in advance, except in the event of a bona fide emergency, employees with six (6) calendar months service or more may be granted a personal leave of absence up to thirty (30) calendar days, without pay and without loss of seniority. In the case of an employee with one (1) calendar year's service or more, such leave may be extended for compelling reasons for periods of thirty (30) calendar days up to a maximum of six (6) months. Requests for leaves of absence shall not be unreasonably denied, considering both the Employer's operational needs and the nature of the employee's need. Upon return from an approved personal leave the employee shall be returned to his or her previous position. Good cause for such a personal leave shall not include working at an alternate job.
2. Upon request at least one (1) week in advance, except in the event of a bona fide emergency, employees shall also be granted time off without pay and without loss of seniority for medical or dental appointments for themselves or their dependents.
3. Employees may take a leave of absence for work related injuries, including any leave designated as FMLA leave, for up to fifteen (15) months without loss of seniority.
4. Employees may take a non-work-related medical leave of absence, including any leave designated as FMLA leave, for up to twelve (12) months without loss of seniority.
5. In no event shall any personal (non-medical) leave be used consecutively with or to extend the twelve (12) month non-work-related medical leave or the fifteen (15) month work related medical leave. Further, no medical leave of absence shall exceed that employee's length of service, subject to a minimum of six (6) months. However, an employee shall be entitled to take multiple medical

leaves for the same work or non-work-related injury. Prior medical leaves shall not be counted against the twelve (12) or fifteen (15) month limit, even if the leave is taken for the same injury, if the employee returns to work for six (6) consecutive months in between leaves of absence. The Employer is not required to make contributions to the Health & Welfare Trust Fund for any employee on a leave of absence beyond the twelve (12) weeks required by the FMLA.

6. An employee may elect to use, but is not required to use, vacation or paid time off for any part of a medical leave.
7. After ninety (90) calendar days from the date of employment, except in the case of maternity leave, any employee returning from a leave of absence under this subsection 6(G), shall, upon release by his or her doctor and certification of ability to perform his or her former duties, be reinstated to the position held prior to his or her disability, subject to the following conditions: In order to qualify under this provision, the employee must notify the Employer on the first day of absence if he or she is able to do so. The Employer may, at the Employer's expense, require certification of a doctor of his or her choosing. The employee must return to work within the time limits of this subsection 6(G) in order to qualify under this provision. Where an employee is out more than once from the same illness, all time out counts toward the time limits. In the event the employee's disability goes beyond the time limits set forth above, then the employee will be placed on a layoff status with recall rights for the next available opening in the employee's classification as set forth in Section 16. An employee qualifying under this provision shall not lose any rights under this Agreement, including vacation rights.

H. **Union Leaves of Absence**

1. **Union Officer/Employee.** Any employee elected to Union office or hired by the Union as an employee of the Union shall be granted a leave of absence without pay and without loss of seniority for the period of holding such office or employment. The employee shall return to work without loss of seniority so long as he or she notifies the Employer of the desire to return to work within thirty (30) calendar days of leaving Union office or employment. Such an employee shall not be entitled to bump another employee, but shall be offered any available position in the classification(s) in which the employee was previously employed by the Employer. If such a position is not available, the employee shall be considered on layoff status pursuant to this Agreement.

2. **Union Training.** Any employee selected by the Union to attend educational or training meetings or to participate in other Union business or activities, including but not limited to Union Executive Board meetings and Union conventions (but not including the processing of grievances) may be granted a leave of absence without pay and without loss of seniority to attend such meetings, business or activities, provided the Employer is given at least two (2) weeks' advance notice; provided, however, that the number of such employees on leave at any one time shall not exceed one (1) employee per work unit. Requests for such leaves shall not be unreasonably denied.
3. **Steward Training.** Effective January 1, 2019, up to eight (8) members of the bargaining unit shall receive annually up to two (2) paid days off for Union training. The purpose of the training is to train shop stewards so that they may more competently represent the Employer's employees. The Union shall provide at least a ten (10) calendar day notice to the Employer of scheduled dates for union training. The Union and the Employer shall cooperate to schedule trainings at times which are not unduly disruptive to the Employer's business operations.

I. **Paid Time Off**

1. **Eligibility**

Regular employees are eligible to accumulate PTO hours. Temporary, on-call, extra, and/or casual employees do not accumulate PTO. PTO begins to accumulate on the first day of an employee's employment, but employees do not start accruing prior to completion of the employee's introductory period.

2. **Accumulation**

- a. PTO shall accumulate as follows:
Non-tipped employees accumulate one-half ($\frac{1}{2}$) a day of their regularly worked shift every quarter, for a maximum total of two (2) days per calendar year. Tipped employees (as defined in subsection 6(A)(1)(b)), accumulate three-fourths ($\frac{3}{4}$) a day of their regularly worked shift every quarter for a maximum of three (3) days per calendar year. However, bussers, bartenders, and barbacks accumulate PTO at the same rate as tipped employees.

- b. Employees do not accumulate PTO during an unpaid leave of absence of thirty (30) days or more.
- c. PTO days shall have a maximum accumulation of thirty (30) days.

3. **Requests for PTO**

- a. Except in emergencies, employees must request PTO as far in advance as possible.
- b. Requests for PTO shall not be unreasonably denied and managers are encouraged to approve them, business conditions permitting.
- c. Tipped employees shall be paid at the rate of two times (2x) their straight-time hourly rate when using PTO.

4. **Using PTO Off in Conjunction with a Leave of Absence.** PTO hours may be used prior to the beginning of an unpaid leave of absence (LOA) and substituted for unpaid LOA during the LOA with department approval.

5. **Cash Out.** Cash out unused PTO can only be requested, twice a year and in the following months: June and December and shall be paid within ten (10) business days.

6. **Payment of Unused PTO Upon Separation.** Employees leaving the Employer with at least one year of continuous service shall receive pay for any unused PTO accumulated upon separation, unless the separation is the result of serious misconduct warranting discharge without prior discipline, or resignation without providing two weeks' notice, or notice that is reasonable under the circumstances.

Section 7. Holidays

- A. For all classifications covered under Schedule "A," New Year's Day, Martin Luther King's Birthday, President's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, and Christmas Day, shall be paid for at straight time if not worked and double time if worked, subject to the conditions set forth below.
- B. For purposes of this provision, the holidays of New Year's Day, Labor Day, Thanksgiving Day and Christmas Day mean the twenty-four (24) hours of the calendar day specified, except that if any fall on Sunday, the Employer

may observe Monday as the contract holiday. In the case of the holidays of Martin Luther King's Birthday, Memorial Day, President's Day, and Independence Day, it means the twenty-four (24) hours of the calendar day designated by the Federal Government for observance of said holidays.

- C. In all cases, the holiday pay shall be paid at the eight (8)-hour straight shift rate for any employee whose shift commences during the designated holiday hours, except that regularly scheduled short shift employees shall be paid on the basis of their regular shift hours, that is, based on the average number of hours worked per day during the preceding two-week period. Employees who normally work an eight-hour shift may not be worked a short shift on a holiday.
- D. An employee whose regular day off falls on the designated paid holiday, shall be paid for such holiday. Extra workers working on the designated holiday shall receive double time, plus the regular extra work differential rate of pay set forth in Schedule A.
- E. To be eligible for straight time holiday pay, if not worked, an employee must have been on the payroll thirty (30) calendar days prior to the holiday and shall have worked his or her last regular scheduled shift before the holiday and his or her next regular scheduled shift after the holiday, unless excused by the Employer. The thirty (30)-calendar day qualifying period is not broken by authorized absences, not in excess of ninety (90) days, due to illness or injury, or excused leave of absence, and such employees would be entitled to holiday pay for holidays not worked providing they meet the conditions of subsection 6(G)(7).
- F. If an employee is scheduled to work on a holiday and refuses or fails to appear for holiday work, he or she shall not receive holiday pay.
- G. When an employee is required to work on a holiday which is also the sixth or seventh day of such employee's regular workweek, he or she shall be paid at two and one-half times his or her regular rate of pay.
- H. Extra employees are not entitled to holiday pay for not working. This shall not apply to regular employees occasionally assigned a short workweek. Banquet employees are to be considered as extra employees for holidays and New Year's Eve employment.
- I. If a paid holiday falls while an employee is on vacation, he or she shall receive the holiday pay in addition to the vacation pay.
- J. When the Employer schedules some but not all employees in a particular department and classification to work on a holiday, the choice of working or not working shall be given by departmental seniority provided that the

Employer may require employees to work in reverse order of departmental seniority if an insufficient number of employees elect to work.

- K. Tipped employees who do not work on a holiday, but are eligible for holiday pay, shall be paid at the rate of two times (2x) their straight-time hourly rate.

Section 8. Health and Welfare, Retirement, and Legal Plans; 401(k) Plan; Hospitality Industry Training and Education Fund; and Hospitality Industry Labor-Management Cooperation Trust Fund

A. Welfare Fund, Retirement and Legal Plan

1. The Employer and the Union agree to be bound by the Agreement and Declaration of Trust ("Trust Agreement") of UNITE HERE HEALTH ("Fund") as may, from time to time, be amended, through October 31, 2020 and they do hereby irrevocably designate as their respective representatives on the Board of Trustees such Trustees named in the Trust Agreement as Employer and Union Trustees, together with their successors selected as provided therein, and agree to abide and be bound by all procedures established and actions taken by said Trustees pursuant to the Trust Agreement. Any provision in this Agreement that is inconsistent with the Trust Agreement, or the Plan of Benefits, rules, or procedures established by the Trustees, shall be null and void.
2. The Employer agrees to contribute to the Fund the sums listed below for each hour worked or paid for the purpose of providing health and welfare benefits under the Plan or such new, merged, or consolidated plan as may be adopted by the Trustees. Said contributions shall be submitted monthly, together with a report of the employee data required by the Fund, in the format prescribed by the Fund, no later than the fifteenth (15th) day of the month following the month for which contributions are to be made.
 - Effective December 1, 2018, the contribution shall be five dollars and seventy-eight cents (\$5.78) per hour. However, for hours worked in October and November 2019, payable in November and December 2019, the contribution shall be four dollars and seventy-eight cents (\$4.78) per hour. (The remaining one dollar (\$1.00) per hour shall be reallocated to the Retirement Funds, referenced in subsections 8(B) and 8(C) below, for hours worked in October and November 2019, payable in November and December 2019.)
 - Effective January 1, 2021, and continuing through the expiration of this Agreement, the Employer agrees to increase its contribution rate as determined by the Union in accordance with the terms of the Memorandum of Understanding

Concerning Trust Fund Increases, and subject to the limits therein.

3. Effective October 1, 2019, the Employer's composite hourly contribution rate to the Fund shall cover the cost of coverage for all eligible employees, including any employees on FMLA leave. Effective January 1, 2020, the Fund shall determine the additional hourly contribution, if any, required in order to provide coverage for employees on FMLA leave. If any incremental cost increase of FMLA coverage exceeds four cents (\$0.04) per hour, the Employer will contribute the difference. The new method for funding FMLA coverage as described in this paragraph is contingent upon UNITE HERE HEALTH Trustee approval.
4. Effective November 1, 2020, the Employer hereby accepts, ratifies, and becomes bound by the terms of that certain Agreement and Declaration of Trust executed by the signatory Employers and the Union establishing the Santa Monica UNITE HERE Health Benefit Fund ("Benefit Fund"), as amended, the same as though it were signatory thereto. A copy of said Agreement and Declaration of Trust is provided to the Employer.
5. Effective with hours worked or paid as of November 1, 2020, the Employer shall contribute to the Benefit Fund five dollars and fifty cents (\$5.50) per hour worked by or paid, not including meal break penalties, to bargaining unit employees. Bargaining unit employees will participate in the plan of benefits known as the "Hotel Plan."
6. Effective November 1, 2020, the Benefit Fund will provide immediate health care coverage to all bargaining unit employees who were eligible for coverage under the UNITE HERE Health plan in September 2020 and who have timely enrolled and will extend coverage to such bargaining unit employees through January 31, 2021. Only bargaining unit employees who meet eligibility requirements of the Hotel Plan will continue to be eligible after January 31, 2021. Eligibility will be determined in accordance with the Hotel Plan's normal eligibility rules (i.e., actual hours worked or paid for in November 2020, excluding meal break penalties, and paid will determine eligibility for February 2021).
7. The Employer shall contribute the following amounts to pay for health insurance coverage through the Benefit Fund for its bargaining union employees:
 - a. No later than December 10, 2020, the Employer shall contribute five dollars and fifty cents \$5.50 per hour on one

100% of hours worked or paid, not including meal break penalties, to bargaining unit employees in February 2020. Any hours worked or paid to bargaining unit employees for November 2020 shall be included in this payment. If the Employer's contribution based on actual hours paid in November 2020 exceeds one 100% of the February 2020 hours' contribution amount for an employee, then the Employer shall contribute for that month based on actual hours worked or paid.

- b. No later than December 31, 2020, the Employer shall contribute five dollars and fifty cents (\$5.50) per hour of 85% of hours worked or paid, not including meal break penalties, to bargaining unit employees in February 2020. Any contributions made for actual hours worked or paid to bargaining unit employees for December 2020 shall be included as part of this total payment and credited by the benefit fund to cover any contributions scheduled to be made in January 2021 for December 2020 hours. If the Employer's contribution based on actual hours paid in December 2020 exceeds the 85% of the February 2020 hours contribution amount for an employee, then the Employer shall contribute for that month based on actual hours paid.
- 8. Eligible bargaining unit employees who elect coverage under the Kaiser HMO will be required to pay a monthly premium of \$20.00. The monthly premiums shall be collected by the Employer (via payroll deduction) and paid to the Benefit Fund in the same payment with the Employer's contribution for that month.
- 9. In the event the Employer fails to average at least fifty (50%) occupancy over the course of calendar year 2021 or during the first two (2) quarters of calendar year 2022, the parties will meet to discuss the further delay to the implementation of any future Benefit Bucket and wage increases set forth in the MOA.
- 10. Notwithstanding any provisions of this Agreement to the contrary, this Agreement shall not restrict the Union's right to take economic action against the Employer in the event that the Trustees determine that the Employer has failed to make the contributions required pursuant to this Agreement.
- 11. Congress should enact a National Health and Welfare Law, there will be no duplication of benefits under the Welfare Fund. Any resultant savings will not be used to increase present benefits or add new benefits. Consideration will be given to any requirements in the new

law requiring contributions or taxes upon the employer and/or employee to finance the new National Program, and contributions required by the Labor Agreement may be utilized to maintain benefits or may be used to meet the funding requirements of the new Pension Reform Law.

12. At the Union's option, the wage increases specified in this Agreement may be reduced, and the amount of such reduction contributed by the Employer to the Welfare Fund, if required, to maintain benefits.

B. Los Angeles Hotel-Restaurant Employer-Union Retirement Fund (Non-Laundry Employees Only)

1. The Los Angeles Hotel-Restaurant Employer-Union Retirement Fund, as originally established effective April 15, 1955 and as subsequently amended, is hereby continued. Said Fund shall be jointly administered by the Retirement Fund Trustees limited only by the terms and provisions of this Agreement and the Trust Agreement, as amended, establishing, and continuing the Retirement Fund.
2. The Employer contribution shall continue to be two dollars and thirteen cents (\$2.13) per hour worked or paid. (See also subsection 8(A)(2) above.) Effective April 1, 2020, the Employer contribution shall increase to two dollars and forty-eight cents (\$2.48) per hour. Effective April 1, 2021, and continuing through the expiration of this Agreement, the Employer agrees to increase its contribution rate as determined by the Union in accordance with the terms of the Memorandum of Understanding Concerning Trust Fund Increases, and subject to the limits therein.
3. The Retirement Fund shall be amended to provide that participation in the Retirement Fund may be extended throughout the Southern California geographical area and that participation may be implemented by merger of Trusts or by any Employer who has a contract with any local union affiliated with UNITE HERE! International Union in the Southern California area requiring such participation.
4. The Employer acknowledges receipt of a copy of, and agrees to accept, be bound by, and comply fully with all the terms of the Trust Agreement providing for the Los Angeles Hotel-Restaurant Employer-Union Retirement Fund and any amendments thereto whether heretofore or hereafter made.

5. The parties agree to instruct their Trustees to review proposals to convert the Los Angeles Hotel-Restaurant Employer-Union Retirement Fund into a defined contribution individual account money purchase pension plan as defined by law. If the Trustees decide to adopt a defined contribution individual account pension plan then the Trustees are empowered to adopt the necessary trust documents to accomplish such conversion. The parties hereto agree to be bound by any such alterations, amendments, changes, modifications, or new documents adopted by the Trustees.
6. If at any time during the life of the defined benefit plan, or upon its termination, the plan actuary certifies that there is a pending shortage due to law or regulation of payment of accrued benefits, then all part of the contributions to be defined contribution plan shall be temporarily directed to pay the defined benefit plan, as required, until the shortage is paid.

C. UNITE HERE Retirement Fund (Laundry Employees Only)

1. The Employer shall continue to contribute to the UNITE HERE Retirement Fund ("UHRF") the sum of three hundred nineteen and 60/100 dollars (\$319.60) per month for each eligible laundry employee. (See also subsection 8(A)(2) above.) Effective April 1, 2020, the Employer contribution shall increase to three hundred sixty-two and 85/100 dollars (\$362.85). Effective April 1, 2021, and continuing through the expiration of this Agreement, the Employer agrees to increase the contribution rate as determined by the Union in accordance with the terms of the Memorandum of Understanding Concerning Trust Fund Increases, and subject to the limits therein.
2. The Employer agrees to abide and be bound by all the terms and provisions of the UHRF Indenture as executed and as it has been and may from time to time be amended.
3. An eligible Employee with respect to whom monthly contributions are required to be made shall mean:
 - a. Any Employee covered by this Agreement who was employed by the Employer the first (1st) working day of the preceding calendar month and who has been on the payroll a full calendar month including the first (1st) working day of the month;
 - b. Any Employee covered by this Agreement who was an eligible participant of the UHRF within six (6) months prior to his/her date of hire; payments on behalf of such Employee shall be

due on the first (1st) working day of the month following or coincident with his date of hire.

4. Contributions shall be made by the tenth (10th) day of the month for which payment is due. Payments not received in full by the twentieth (20th) day of the month shall be considered delinquent and subject to an amount equal to the greater of interest on the unpaid contribution at the highest rate permitted by law, or liquidated damages of twenty percent (20%) of the amount of the contribution. This amount shall become due and payable to the Trust Funds by the delinquent Employer upon the day immediately following the date on which the contribution or contributions become delinquent and shall be in addition to said contribution or contributions, provided, however, the Trustees may waive payment of the liquidated damages, or any portion thereof, in a particular case upon good cause satisfactory to the Trustees.
5. In any suit brought by the Trustees of the UHRF to collect contributions, the Trustees or the Trust Funds shall be entitled to the unpaid contributions, interest on the unpaid contributions or liquidated damages, whichever is greater; reasonable attorneys' fees; costs of suit; and such other legal or equitable relief as the court deems appropriate.
6. Upon request of the Trustees the Employer shall make available such books, records and reports as the Trustees' auditor deems appropriate to determine that the Employer has made required contributions. In the event the Trustees determine that the Employer failed to make the required contributions, the Trustees may assess the Employer the cost of the audit.
7. In the event of failure by the Employer to make contributions by the time they are due, the Trustees shall take whatever action they deem appropriate. If an Employer is delinquent in payment of contributions, the Union may, after seventy-two (72) hours' written notice of such delinquency, take any legal action necessary, including the right to file a grievance or the right to strike to collect such contributions, along with interest or liquidated damages, notwithstanding any other clause of this Agreement.

D. Legal Services Fund

1. The Los Angeles Hotel-Restaurant Employer-Union Legal Services Fund, as originally established, is hereby continued. Said Fund shall be jointly administered by the Legal Services Fund Trustees, limited only by the terms and provision of this Agreement and the Trust Agreements, as amended, establishing and continuing the Fund.

2. The Employer acknowledges receipt of a copy of, and agrees to accept, be bound by, and comply fully with all the terms of the Trust Agreement providing for the Los Angeles Hotel-Restaurant Employer-Union Legal Services Fund and any amendments thereto.
 3. The Employer shall continue to contribute eleven cents (\$0.11) per hour worked or for which the Employer is required to pay the employee to the Legal Services Fund. Effective January 1, 2021, and continuing through the expiration of this Agreement, the Employer agrees to increase its contribution rate as determined by the Union in accordance with the terms of the Memorandum of Understanding Concerning Trust Fund Increases, and subject to the limits therein.
- E. Notwithstanding any provisions of this Agreement to the contrary, this Agreement shall not restrict the Union's right to take economic action against the Employer in the event that the Trustees determine that the Employer has failed to make the contributions required pursuant to this Agreement.
- F. **401(k) Plan**
1. The Employer shall provide payroll deduction services to its employees covered under this Agreement with Union to permit voluntary employee contributions to the Labor Unions 401(k) Plan ("Plan").
 2. The Employer shall not be obliged to make any contributions to such Plan and shall only be obliged to facilitate administrative withholding and reporting procedures to effect voluntary payroll deductions set forth in the provisions of the Plan.
 3. The Employer shall submit all wage and employee census data for annual discrimination testing in accordance with the time requirements and format specified by the Plan.
- G. **Hospitality Industry Training and Education Fund**
1. The Employer and the Union desire to establish the highest standards of service to patrons and guests in the Los Angeles hospitality industry, and to create the maximum job opportunity and advancement for men and women working in the hospitality industry. Therefore, the Employer and the Union agree to establish the Hospitality Industry Training and Education Fund.

2. The Employer shall continue to contribute five and one-half cents (\$0.055) per hour worked or paid. Effective January 1, 2021, and continuing through the expiration of this Agreement, the Employer agrees to increase its contribution rate as determined by the Union in accordance with the terms of the Memorandum of Understanding Concerning Trust Fund Increases, and subject to the limits therein. Contributions may be waived by mutual agreement.
3. The Union and the Employer will work together to obtain additional funding for employee training from various sources.

H. Hospitality Industry Labor-Management Cooperation Trust Fund

1. The Hospitality Industry Labor-Management Cooperation Trust Fund ("HILMC Fund") was established July 19, 2019. The Employer acknowledges receipt of a copy of, and agrees to accept, be bound by, and comply fully with all the terms of the Declaration of Trust establishing the Hospitality Industry Labor-Management Cooperation Trust Fund ("Trust Agreement") and any amendments thereto. The Employer shall execute and deliver to the HILMC Fund Trustees an agreement in writing to participate in the HILMC Fund pursuant to the terms of the Trust Agreement and this Agreement.
2. **Contributions.** The Employer shall commence the submission of contributions to the Committee based on hours compensated in August 2019. The Employer can make one (1) annual lump-sum payment at the beginning of each fiscal year, which shall be calculated based on all hours for which employees covered by this Agreement were compensated during the preceding year, including and without limitation, PTO and holiday hours, at a rate of eight cents (\$0.08) per hour. Alternatively, the Employer can make monthly contributions at a rate of eight cents (\$0.08) per hour by the last day of each month based on hours for which employees covered by this Agreement were compensated during the preceding month. The contributions shall be submitted together with a report of the employee data required by the Committee in the format prescribed by the Committee.

Section 9. Hours, Shifts and Differentials

- A. The workday shall normally be eight (8) hours. The workday shall be construed to be that an employee is to be at his or her station in proper uniform and ready to work at the beginning of the shift and shall remain at the station in proper uniform until the end of the shift subject to herein required rest periods and to eating time.

- B. Dining Room employees shall not work more than eight (8) hours in twelve (12) hours. There shall be no more than one split in a shift. There shall be no split shift between the hours of 6:00 P.M. and 4:00 A.M. Except for banquet employees, there shall normally be a minimum of twelve (12) hours between shifts. Any hours worked within this twelve-hour period shall be paid at the overtime rates set forth in this Agreement.
- C. Split and short shifts shall be permitted only in accordance with Schedule A. Wage differentials for split and short shifts (where permitted) above the regular wage shall be set forth in Schedule A.
- D. Overtime shall be paid as incurred.
- E. Five (5) days shall constitute a week's work. All employees shall receive two (2) consecutive days off in each seven (7) consecutive days, except in those departments operating six (6) days per week, in which case the two days off need not be consecutive.
 - 1. Where an employee is entitled to two (2) consecutive days off and his or her two (2) days off are not consecutive, he or she shall receive penalty pay of an additional one-half ($\frac{1}{2}$) day's pay, except as provided in this Section 9.
 - 2. If an employee's customary shift schedule is to be changed, the employee shall be given notice the working day before the change is to be made, except in case of emergency, a change may be made with the consent of the employee.
 - 3. In those departments operating seven (7) days per week, any work performed at the request of the Employer in excess of eight (8) hours per day and/or five (5) consecutive workdays within a period of seven (7) consecutive workdays shall be paid at the rate of one and one-half ($1\frac{1}{2}$) times the regular rate of pay, and any work performed at the request of the Employer in excess of eight (8) hours per day and/or five workdays within a period of seven (7) consecutive days shall be paid for at the rate of one and one-half ($1\frac{1}{2}$) times the regular rate of pay, except:
 - a. When necessitated by rotation or change of regularly established shifts or days off according to a periodic schedule.
 - b. Whenever short-shift employees (working less than eight (8) hours per day) work one or more shifts in excess of four (4) hours during their regular five-day workweek, they shall be paid at the rate set forth in Schedule A for each hour worked on the sixth and seventh day of employment.

- c. Banquet servers, banquet bartenders, and banquet bussers that incur overtime working a third function in a workday shall be paid overtime at one and one-half (1-½) times the employee's base hourly rate.
- 4. Employees working daily three (3)- or four (4)-hour shifts may be employed six (6) days at the rate of pay set forth in Schedule A of this Agreement.
- F. Employees required to work seven (7) consecutive days shall be paid at the rate of double time for such seventh day, with the maximum not to exceed two and one-half times pay regardless of other premiums due.
- G. Kitchen employees: Minimum call, eight (8) hours.
- H. All employees shall receive the night shift differential set forth in Schedule A for working a night shift starting at or after 8:00 p.m. and before 4:00 a.m. Twenty-four (24) hour operations shall have one shift of employees receiving the night shift differential.
- I. Employees hired to work less than four (4) days per week shall receive an extra work differential for both full shifts and short shifts in the amount set forth in Schedule A.

Persons hired to work less than four (4) days per week and who are not notified of change in that status shall continue to receive the extra work differential. In the event of notification of such change of status, it shall not apply retroactively.
- J. Each craft shall be relieved by its own craft at the same rate of pay as the one relieved, except as otherwise set forth in Schedule A.
- K. Excluding work performed during lunch periods or relief periods where an employee performs duties which combine two or more classifications of work he or she shall be paid at the rate specified for each classification only for the time actually worked in each classification.
- L. Under no circumstances shall an employee be entitled to receive more than two and one-half times his or her regular base rate of pay. In applying this provision, overscale wage rates shall not be considered as premium pay.
- M. The Employer may require all employees covered by this Agreement to attend mandatory training/department meeting sessions as needed. If the meeting is scheduled on the employee's day off, the employee shall be paid for a minimum of four (4) hours or the length of the meeting, whichever is

greater, unless the employee normally works less than an eight (8)-hour shift, in which case the employee shall be paid one-half ($\frac{1}{2}$) of his or her normal shift, or the length of the meeting, whichever is greater. Tipped employees shall be paid at the rate of two times (2x) their straight-time hourly rate when attending mandatory meetings on their day off. The Employer shall provide at least twenty-four (24) hours' notice of a meeting and at least four (4) hours' notice of the cancellation of a meeting to all affected employees. If the Employer fails to provide at least four (4) hours' notice of the cancellation of a mandatory meeting, the Employer shall pay each employee who reports to the meeting four (4) hours' straight-time pay, unless the employee normally works less than an eight (8)-hour shift, in which case the employee shall be paid one-half ($\frac{1}{2}$) of his or her normal shift.

Section 10. Meals and Rest Periods to be Furnished to Employees

- A. All employees working a shift of three (3) to six (6) hours shall receive one (1) meal. All food and beverage employees working a straight shift of more than six (6) hours shall receive two (2) meals. All hotel service employees shall receive one (1) meal per shift. All employees working a split shift shall receive two (2) meals.
- B. Meals shall be balanced and shall consist of food comparable to that served customers. There shall be no deductions from wages of employees for meals furnished by the Employer except those required by State or Federal laws.
- C. All employees shall be allowed thirty (30) minutes to eat one (1) meal during any shift that is over six (6) hours. All employees shall be allowed two (2) ten (10)-minute paid rest periods per eight (8)-hour shift and one (1) ten (10)-minute paid rest period for four (4)- or six (6)-hour shifts. The thirty (30) minute meal period and the rest periods are paid time and must be included as such in making health and welfare and retirement contributions and also for purposes of computing overtime, vacation, and holiday pay.

The Employer shall not require as a condition of employment that any employee eat or lodge at the place of employment or accept food or lodging where the cost is deducted from the wages provided for under this Agreement.

Section 11. Uniforms, Linen and Laundering

- A. All uniforms and linens shall be furnished and laundered by the Employer without cost to the employee, except that the Employer may opt to pay employees \$0.50 per day or \$2.50 per week to launder or clean their own

uniforms. However, for cooks, the Employer shall launder or clean the uniforms, but may opt to pay employees \$0.50 per day or \$2.50 per week for furnishing their own uniforms.

- B. The Employer must provide a minimum of at least two (2) uniforms per week to servers. All bell service department employees shall be provided at least two (2) uniforms of coat and pants, or jackets and pants, or heavy uniform type shirt and pants per week. Housekeeping department employees, excluding the assistant housekeeper and the secretary of housekeeping, shall be provided a minimum of at least two (2) uniforms per week. House attendants shall be provided with at least two (2) uniforms, smocks or slacks or overalls, or jackets and pants per week.
- C. For purposes of this Section 11 “uniforms and linens” mean any apparel specified by the Employer to be worn by employees in the service of the Employer, except that a black tuxedo for a head server or captain and black pants and white shirt for a dining room attendant, server, or bartender, are not considered a uniform. However, white blouses and black skirts are to be considered uniforms if required by the Employer. It is also understood that cooks’ uniforms include cap, coat, apron, pants, and neckerchief.
- D. It is agreed that the following wearing apparel shall not constitute a uniform within the meaning of this Section 11: shoes, stockings, underclothing, men’s shirts or neckties, or any other type of clothing normally used for street wear, where the Employer does not require or specify the color, style, or design thereof.
- E. This Section 11 is applicable to employees in the classifications set forth in Schedule A under the heading “Hotel and Motel Service Employees” insofar as the furnishing and laundering of uniforms and linens by the Employer and the definition of uniforms and linens specified in the preceding paragraphs are concerned.

Section 12. Wage Scales, Schedule A

- A. The wage scales hereto attached, marked Schedule A are hereby made a part of this Agreement. Scales of wages shown in Schedule A of this Agreement are minimum wage scales and shall not prohibit a superior worker from receiving a higher scale of wages. No present employee’s wages or benefits shall be reduced or otherwise adversely affected as a result of the signing of this Agreement.
- B. Excluding extra banquet employees employed to work a single function, employees may be hired at eighty percent (80%) of scale for the first ninety (90) days of employment.

- C. Employees may be hired for a short shift at a rate ten percent (10%) above the eight (8)-hour hourly rate provided that the classification allows for a short shift.
- D. There shall be no increases in the short shift rate of pay until such time the rate equals a rate ten percent (10%) above the eight (8)-hour hourly rate of pay.
- E. During the term of this Agreement, the Employer shall provide the wage increases outlined below. Such increases shall, unless the parties specifically agree otherwise, be provided in the same amount to employees working above the minimum wage scales in Schedule A as well as those at the minimum scales, and the scales themselves.

- 1. **Non-Tipped Wage Increases.** All non-tipped employees (including coffee bar attendant/barista) shall receive the following wage increases:

December 1, 2018	\$2.00
January 1, 2020	\$0.50
June 1, 2020	\$0.50
December 1, 2020	\$0.50
June 1, 2021	\$0.55
December 1, 2021	\$0.55
June 1, 2022	\$0.55
December 1, 2022	\$0.55
June 1, 2023	\$0.55

- 2. **Bell and Door Wage Scale.** Bellpersons, doorpersons, and bell captains shall be paid the hourly wage rates below, and shall receive increases sufficient to make their rates of pay equivalent to these hourly rates:

December 1, 2018	\$14.25 (Captain \$15.25)
July 1, 2019	\$15.25 (Captain \$16.25)
July 1, 2020	\$17.00 (Captain \$18.00)
July 1, 2021	\$18.00 (Captain \$19.00)
January 1, 2022	CA Minimum Wage Plus \$3.00 (Captain: CA Minimum Wage Plus \$4.00)
January 1, 2023	CA Minimum Wage Plus \$3.00 (Captain: CA Minimum Wage Plus \$4.00)

- 3. **Wage Increases for Above-Scale Bartenders, Barbacks, Runners, and Bussers.** The below wage increases shall apply to the individual hourly rates of bartenders, barbacks, and runners who

as of December 1, 2018 earn more than the new hourly classification rates set forth in subsections 12.E.4, 12.E.5, or 12.E.6 below.

December 1, 2018	\$0.55
January 1, 2020	\$0.55
January 1, 2021	\$0.50
January 1, 2022	\$0.40
January 1, 2023	\$0.40

4. **Bartenders (A La Carte) Wage Scale.** Bartenders shall be paid the hourly wage rates below, and shall receive increases sufficient to make their rates of pay equivalent to these hourly rates.

December 1, 2018	\$17.00
January 1, 2020	\$17.25
January 1, 2021	\$17.50
January 1, 2022	CA Minimum Wage Plus \$3.00
January 1, 2023	CA Minimum Wage Plus \$3.00

5. **Barback and Runner (A La Carte) Wage Scale.** Barbacks and runners shall be paid the hourly wage rates below, and shall receive increases sufficient to make their rates of pay equivalent to these hourly rates:

December 1, 2018	\$17.00
January 1, 2020	\$17.50
January 1, 2021	\$18.25
January 1, 2022	CA Minimum Wage Plus \$3.75
January 1, 2023	CA Minimum Wage Plus \$3.75

6. **Bussers (A La Carte, Room Service, and Banquet) Wage Scale.** Bussers shall be paid the hourly wage rates below, and shall receive increases sufficient to make their rates of pay equivalent to these hourly rates.

December 1, 2018	\$17.00
January 1, 2020	\$17.50
January 1, 2021	\$18.00
January 1, 2022	CA Minimum Wage Plus \$3.50
January 1, 2023	CA Minimum Wage Plus \$3.50

Section 13. Pay Periods

Wages shall be paid weekly or semi-weekly according to the present customary practice of the Employer. Extra work will be paid on regular paydays. All banquet wages and service charges shall be paid according to past practice of the Employer.

Section 14. General Provisions

A. **Bargaining Unit Work.** Job content shall determine job titles or classifications and mere change in title or classification shall not exempt such employees or classifications from this Agreement. It is understood that employees who are classified in jobs not covered by this Agreement shall automatically become covered by this Agreement when they are assigned to work covered hereunder. Whenever changed or combined jobs include duties covered by this Agreement, they shall also be deemed a part of this Agreement.

1. Non-bargaining unit employees shall not normally perform bargaining unit work, but may do so in emergencies or occasionally to meet urgent service requirements.
2. Employees shall not be required to perform work which is not customarily performed by their craft, except in the event of an emergency. This provision is not to prevent employees from working in combined classifications of work as allowed in subsection 9(K) of this Agreement.

B. Shop Stewards

1. The Union shall have the right to appoint or elect Shop Stewards in any establishment. The Shop Steward shall report to the Union and shall not interfere with the management of the business. Shop Stewards may be designated by the Union to handle grievances procedure and shall be given time off from their regular schedule without loss of pay to participate in grievance meetings with management which have been scheduled at mutually agreeable times. The Employer reserves the right to schedule grievance meetings during non-working hours. The Employer and the Stewards will treat each other with mutual respect.
2. Shop Stewards will be certified by the Union as having completed a course of study concerning the duties and responsibilities of a Shop Steward under this Agreement. Said certificate will be sent to the Employer. In order to be recognized as a Shop Steward, the Union shall notify the Employer of the names of elected or certified shop stewards.
3. Shop Stewards shall not interfere with the Employer's direction of the work force or with customers. The Shop Steward must not leave his or her assigned work area for Union business without prior permission. Such permission will not be unreasonably withheld.

4. No member of the Union shall be discharged or otherwise discriminated against because he or she has filed a claim with any governmental agency or a grievance with the Union. Any dispute arising from this provision will be referred to the grievance procedure and arbitration. Nothing herein shall be construed to prevent an employee from communicating directly with management regarding a problem or complaint.
- C. **Other Deductions.** There shall be no deductions for charities, gifts or donations from the wages or pay checks of employees unless blanket or specific authorization is given by the Union in writing to the Employer.
- D. **New Classifications.** New classifications established under the jurisdiction of the Union shall be added to and made a part of Schedule A with a mutually agreed upon wage rate.
- E. **Losses and Shortages.** Servers, front desk agents, and other employees who have responsibility for financial transactions, including employees authorized by management to accept checks, shall not be held responsible for credit card shortages or funds unless it can be shown that such loss or shortages is caused by a dishonest or willful act or gross negligence of the employee. Any grievances arising under this provision shall be determined under the procedures set forth in Section 17.
- F. **Warning Notices.** Warning notices shall be expunged from an employee's records after one (1) calendar year and shall not be used as the basis for discipline nor submitted in evidence in any grievance or arbitration.
- G. **Health and Safety.** The Employer recognizes its obligation to provide a safe and healthy environment for its employees. To assist in accomplishing this goal, it is agreed that the Employer will establish a Health and Safety Committee. Said Committee shall consist of employee and management representatives. The Committee shall meet on a monthly basis, or as needed or requested by the members of the Committee. The Committee shall meet on work time and bargaining unit committee members shall be paid at their regular rate of pay. The Employer shall also consult with the Union upon request to establish a program, or to modify an existing program, for health and safety on the job.
- H. **Kitchens.** The Employer shall provide safety mats on kitchen floors in appropriate work areas. The Employer shall make available heat-proof gloves where required. The Employer shall provide dishwashers with rubber or plastic aprons.

I. **Alcohol and Drug Abuse.** The Employer and the Union agree that all employees should be provided with a drug-free and safe workplace. To promote this goal, employees are required to report to work in appropriate mental and physical condition to perform their jobs in a satisfactory manner. Except for occasional Employer-sponsored social events where alcohol may be served, while on the Employer's premises no employee may use, possess, distribute, sell or be under the influence of alcohol or illegal drugs. The legal use of prescribed drugs is permitted on the job only if it does not impair an employee's ability to perform the essential functions of the job effectively and in a safe manner that does not endanger other individuals in the workplace. The employer reserves the right to conduct substance abuse testing of any employee involved in a work-related injury that involves treatment by a medical professionals or accident that involves property damage in excess of \$500.00, or who reasonably appears to be under the influence of alcohol or drugs while engaged in work-related activities. The Employer shall not require reasonable suspicion drug/alcohol testing unless a security officer and a manager (or a bargaining unit employee in lieu of the manager) document such suspicion prior to the Employer requiring a test. If any employee is sent for testing and the test is not positive, the employee shall suffer no loss of pay, including tips. Any drug/alcohol testing shall be done pursuant to procedures to be discussed by the Employer and Union Representatives.

J. **Housekeeping**

1. Room attendants perform general room cleaning (and bathroom) and light hall cleaning, including bed making, but excluding any heavy lifting, mattress turning, heavy vacuuming, wall washing and/or moving heavy furniture. On any shift when these excluded duties are performed, the provision set forth in subsection 9(K) shall be applicable. The Employer shall not implement Marriott's Make a Green Choice process or a similar Employer process. The existing Green Seal process shall continue to be on a voluntary basis in the Housekeeping Department.
2. No later than January 1, 2020, the Employer shall provide fitted sheets instead of a flat sheet as a bottom sheet on all hotel beds. For purpose of this section, a "fitted sheet" means a bed sheet containing elastic or similar material sewn into each one of the four corners that allows the sheet to stay in place over the mattress. The Union shall have the right to approve the quality of the sheets before utilization by the Employer.
3. House attendants perform specialized house cleaning duties or assignments that require a high degree of skill, responsibility, or uncommon physical effort, perform heavy room and hall cleaning,

including items excluded from the room attendant classification. House attendants shall not be required to perform other jurisdiction craft work, such as painters, plumbing, and operating engineers.

4. Room attendants shall clean fifteen (15) rooms/credits in an eight (8) hour shift, which shall be reduced as follows:
 - a. By one (1) room for room attendants with seven (7) or more checkouts on any one day and by two (2) rooms for room attendants with eleven (11) or more checkouts on any one day;
 - b. By one (1) room for assignments to more than two (2) floors; and
 - c. By one (1) room for more than seven (7) rooms assigned with two (2) double beds.
5. The Employer shall reduce the contractual room quota to no more than eight (8) for any room attendant, for up to four (4) months per pregnancy, who informs a supervisor that a pregnancy, childbirth, or related medical condition requires such reduction and the employee provides a health care provider's certification.
6. Room attendants shall receive one-half ($\frac{1}{2}$) the straight time hourly rate of pay for each room over the daily quota cleaned within eight (8) hours.
7. Room attendants shall receive \$3.00 for each cot, crib, sofa bed, or roll-a-way bed made up and such work shall not result in room drops regardless of past practice.
8. Service Express runners shall receive \$1.00 for each roll-a-way delivered to a room.
9. The number of rooms/credits to be fully cleaned by turndown attendants shall be determined as follows: 60 minus number of turndown rooms, divided by 4, with the above-reductions for checkouts, travel, and double beds being factored into the product. For example, if a turndown attendant provides turndown service to 20 rooms, the turndown attendant could be also be assigned 8 rooms with 2 double beds on more than 2 floors: $(60-20) \div 4$, minus 1 travel credit, and minus 1 double bed credit, = 8.
10. Room attendants shall not clean drinking glasses, coffee carafes, or mugs. Those items shall be machine washed to ensure proper

sanitization. Room attendants shall wipe down refrigerators in rooms, but shall not be required to do more than report to management any deep cleaning of refrigerators that is needed.

11. Any cash gratuities left by guests shall be the sole property of the room attendant.

Section 15. Gratuities and Service Charges

- A. **Ownership of Gratuities.** All gratuities shall be the property of the individual employee and shall not be deemed a part of the basic wage. No employee shall be required or permitted to contribute any part of his or her wages, tips or gratuities to the captain, head server, head bartender, manager, assistant manager, or anyone in charge. The Employer shall have no right to order the manner in which tips should be distributed among employees.
- B. **Payment of Gratuities.** Gratuities on charged checks, excluding banquets, shall be paid by the Employer on the date of service without requiring the employee to wait for a charged bill to be paid by the customer. Gratuities on banquets for extra banquet employees, including bartenders, shall be paid within seven (7) days from the date of service if the amount is known, or as soon thereafter as the amount is known.
- C. **In-House Charges in Outlets.** For in house charges in food and beverage outlets, the Employer shall add a gratuity as follows:
 - January 1, 2019 – sixteen percent (16%);
 - January 1, 2020 – seventeen percent (17%); and
 - January 1, 2021 – eighteen percent (18%).
- D. **Unsigned Bills.** The Employer shall add a service charge of twenty percent (20%) to the guest check of patrons who open a tab but leave without signing their bill. In such situations the employee must inform management personnel prior to adding such service charge.
- E. **Where Automatic Gratuity is not Included.** Effective March 27, 2019, the Employer will add suggested gratuities of fifteen percent (15%), eighteen percent (18%), and twenty percent (20%) to all checks where an automatic gratuity is not included.
- F. **Parties of Six or More.** When parties of six (6) or more are served in a full-service food outlet, the Employer shall guarantee that a service charge of twenty percent (20%) will be added to the guest check.
- G. **In-Room Dining Service Charge.** In-room dining servers shall continue to receive a service charge of sixteen and one-half percent (16.5%) of the

guest's check. Such service charges shall be credited toward the difference between the employee's hourly (Schedule A) wage rate and the required minimum wage to be paid by the Employer. All service charges paid to employees are compensation for all hours paid on each day that an employee is working, including meal and rest periods.

- H. **Banquet Service Charge.** The banquet service charge shall be sixteen and one-half percent (16.5%) of the guest's check. Such service charge will be provided on all banquet functions. The Employer shall continue its current practices concerning at-cost functions. Such service charges shall be credited toward the difference between the employee's hourly (Schedule A) wage rate and the required minimum wage to be paid by the Employer. All service charges paid to employees are compensation for all hours paid on each day that an employee is working, including meal and rest periods.

I. **Other Banquet Fees.**

1. Servers required to serve more than twenty (20) guests shall be paid \$0.56 per extra guest for breakfast, luncheon, and tea, and \$0.62 per extra guest for dinners. However, for French service, the foregoing extras shall be applicable when servers are required to serve more than fifteen (15) guests.
2. When banquet servers are called upon to serve another banquet they shall be paid the full rate of another party, as per Schedule A. This provision applies to all cases where the two banquets are held during different hours, but does not apply when the two banquets are served simultaneously during the same banquet shift. Banquet servers shall not be required to set up more than the number assigned to them, nor shall they be required to clear off more than the number given to them to serve.
3. On all banquets, the Employer shall maintain a record and require supervisory or executive employees to maintain a record of the total gratuities paid and received by the Employer or by any supervisory or executive employee and such records shall be made available to the Union and the employees upon request. This does not apply where the customer gives the gratuity in cash and the Employer has no knowledge thereof.
4. On banquet-script parties, or banquets where no gratuities are provided for in the charge, and where no food is served, pay shall be \$10.00 per day above the banquet scale and the Employer will be responsible up to \$10.00 above scale less gratuities received.
5. A premium of \$20.00 shall be paid for New Year's Eve work.

6. The distribution of banquet gratuities and/or service charges shall be as determined and provided in writing by the Union to the Hotel. Before any significant change is made by the Union in the distribution, the Union shall advise the Employer and give good faith consideration to any views the Employer may have on the operational impact of such changes.

J. Bellperson Fees

1. Porterage for Tour Group

- a. Tour Group is defined as (i) a group with a minimum of ten reservations, (ii) has a common arrival date and time, (iii) the group's room and tax are booked to a master account, and (iv) bellpersons are available to service the group.
- b. The standard group contract shall quote an \$8.00 porterage fee per bag round trip (in and out) and the sales department may not negotiate porterage below \$6.00 per bag without the written permission of the General Manager or Hotel Manager.
- c. Tour porterage shall be paid out in cash daily to bellpersons. All bags and fees shall be accounted for and documented. Payouts shall be included as taxable earnings on each bellperson's paystub and W-4 statement as required by law.

2. Porterage for Non-Tour Group:

- a. Non-Tour Group is defined as (i) a group with a minimum of ten reservations, (ii) does not have a common arrival date and time, (iii) the group's room and tax are booked to a master account, and (iv) bellpersons are available to service the group.
- b. The standard group contract shall quote an \$8.00 porterage fee per person round trip (in and out) and the sales department may not negotiate porterage below \$6.00 per person without the written permission of the General Manager or Hotel Manager.

3. **Transporting Wedding Gifts.** The Employer may at its discretion assign a dedicated bellperson to assist wedding guests with transporting gifts and baggage and will pay each bellperson assigned \$25 for each such event.

4. **Requested fees.** Bellpersons may charge guests who request ten (10) or more boxes to be moved in/out/within the hotel a fee of \$2.00 per box. Bellpersons may charge a \$10 fee for storing unusual bulky items.
5. **Other Package/Box Fees.** Bellpersons shall be paid a fee of \$0.50 per package or box that arrives at the mail and information area, whether bellpersons handle them or not. Bellpersons shall also receive a fee of \$0.50 per package or box that is stored in purchasing and handled by a bellperson. All such packages and boxes shall be tracked using package handling forms. Such fees shall be pooled, divided evenly between bellpersons based upon hours worked, and paid to bellpersons on their regular paychecks.
6. **Other Assignments.** Bellpersons who are assigned for more than thirty (30) minutes to deliver express checkout folders under guest room doors shall be paid two times (2x) their hourly rate for all time spent on such deliveries. Bellpersons who are assigned to move a guest's luggage when the guest is not present shall be paid \$5.00 for each room moved.
7. **Group Deliveries.** For group deliveries charged to a master contract with a minimum of ten (10) guests, the minimum quoted service charge to be paid to bellpersons, per item delivered, shall be \$1.50 for drops outside the room, \$2.00 under the door, and \$3.00 for drops inside the room. If a group is unwilling to pay such amounts per item, the Employer shall guarantee such amounts per room.
8. **Report.** The Employer shall continue its past practice of providing bellpersons a report of the above fees.
9. **Housekeeping.** Bellpersons shall not be required to perform room attendant duties.

Section 16. Seniority and Work Opportunity

Subsections 16(A) through 16(E) below shall apply only to non-laundry employees. Subsection 16(F) shall apply only to laundry employees. Subsection 16(G) through 16(I) shall apply to all employees covered by this Agreement.

- A. **Application of Seniority to Non-Laundry Employees.** Employer shall recognize hotel seniority from the employee's original date of hire at the establishment, and departmental seniority from the employee's original starting date in the employee's classification and department. The Employer shall afford employees, in the order of their departmental seniority, preference within the same job classification over less senior employees in

selection of shifts with days off within schedules determined by the Employer; in choice of vacation periods; and in permanent transfer within the same job classification to open positions in other work areas within the same department; provided, however, that the Employer may make temporary scheduling assignments without following seniority where operational needs require. Within the bargaining unit only, the Employer shall afford employees preference for promotion by Hotel seniority, provided the employee is qualified to perform the duties of the new position, and unless a junior employee has significantly greater qualifications for the promotion. An employee seeking transfer within the same job classification shall take precedence over an employee seeking promotion. In the event of a layoff or room closure, employees shall be laid off by department seniority in the affected area, beginning with the least senior employee. If such a layoff or room closure is anticipated by the Employer to be for more than ninety (90) calendar days, laid-off employees shall be offered positions of less senior employees in other areas of the hotel-by-hotel seniority so long as they are qualified to perform the work. In the event of a recall within the same department or a room reopening, employees shall be recalled in order of department seniority within each classification starting with the employee with the greatest department seniority.

- B. **Job Vacancies for Non-Laundry Classifications.** In filling job vacancies which may exist within the bargaining unit, employees from within the hotel bargaining unit shall be given consideration in filling the vacancy prior to the consideration of other applicants. When an opening occurs in any classification covered by this Agreement, the Employer shall post such opening, along with the work location and schedule of the vacancy, on employee bulletin boards for not less than seven (7) days. During the posting period, and thereafter until the position is filled, the Employer may fill the vacancy temporarily. Any employee may bid for the opening by submitting his or her name as designated on the posting. Such bid may be for a transfer or a promotion. Any employee who does not bid for the posted opening shall not have the right to grieve. The opening shall be awarded in accordance with subsection 16(A) above.
- C. **Short-Term Layoff of Non-Laundry Employees.** An employee who is laid off for a period anticipated by the Employer to be ninety (90) calendar days or less shall have the right to replace an employee with less department seniority in another job classification within the same department provided the senior employee has previously worked for the Employer in the other job classification and is still qualified to perform the work. Employees exercising such option shall work the same schedule of hours and days off and at the same classification rate of pay as the individual replaced.
- D. **Return to Former Position by Non-Laundry Employee.** In the event an employee who, within sixty (60) calendar days of his promotion or transfer

or filling a vacancy, decides to return to his or her former job classification or is not able to perform the work of the new position in a satisfactory manner, he or she shall be returned to his or her former classification at the then current wage scale for that job classification without loss of seniority. Any employee promoted or transferred to a position with the Employer outside of the bargaining unit who desires to return to his or her former job classification shall notify the Employer within sixty (60) calendar days of the date of his or her promotion or transfer and shall be returned to said former job classification without loss of seniority.

- E. **Banquet Scheduling.** The parties shall agree on the appropriate system for banquet scheduling.
- F. **Laundry Employee Seniority.** Seniority for laundry employees shall be based on length of continuous employment in the Employer's laundry department. Reduction of the working forces, recall from layoff, and assignment of overtime shall be in accordance with seniority, if the most senior employee is qualified to meet standard qualifications within the subclassification of each classification.
- G. **Schedules and Seniority Lists (All Employees).** There shall be placed in a conspicuous place in each department a work schedule specifying the following information about each employee in the department: name, classification, department seniority date, starting and finishing times, and days off. The Employer shall keep the work schedule up to date. Every six (6) months the Employer will, upon request, furnish the Union with a current seniority list.
- H. **Qualifications (All Employees).** It is agreed that the Employer shall make judgments about qualifications in the first instance, and may act upon such judgments, and that such judgments may subsequently be reviewed and resolved, along with the application of any other provisions of this Section 16, under the grievance and arbitration procedure in Section 17.
- I. **Loss of Seniority (All Employees).** Seniority shall be broken and shall cease upon:
 - 1. Discharge for just cause.
 - 2. Voluntary quit.
 - 3. Absence due to leave of absence under Sections 6 of this Agreement which exceeds the time allowed under such Section.
 - 4. Failure of an employee to return to work upon recall within five (5) working days after written notice is sent to him or her by the Employer at his or her last known address appearing on his or her records.
 - 5. Absence due to layoff exceeding sixteen (16) calendar months, or the length of his or her seniority prior to the layoff, whichever is less;

except that in the case of the closure of a hotel or a significant part of a hotel, the Employer and the Union shall negotiate regarding seniority protection (also see Memorandum of Understanding on Remodeling attached to this Agreement).

Section 17. Grievance Procedure and Grievance Mediation

A. All questions, grievances or controversies pertaining to the application or interpretation of this Agreement shall be handled in the following manner:

- STEP 1. Claims of alleged violation of the terms and provisions of this Agreement should not be considered unless one of the parties hereto notifies the other of such violation within sixty (60) days after the occurrence thereof; and in any event no retroactive adjustment if required shall exceed sixty (60) days from the day the grievance is first submitted to the Employer, or his or her designated representative, by the employee or by the Union, except that the sixty (60) day retroactive adjustment provision shall not apply to claims for vacation pay, provided that such vacation pay claims shall be waived if the claim is not filed within 15 months of the due date of the vacation pay.
- STEP 2. The Employer and the Union shall attempt to settle the matter within 7 days.
- STEP 3. If no settlement is reached within this seven (7) day period, then the question, grievance or controversy shall be submitted in writing within an additional seven (7) days to the Employer by the Union or to the Union by the Employer, as the case may be.
- STEP 4. If the matter cannot be disposed of within fourteen (14) days from the date of such written notice, then the matter may be referred to an impartial arbitrator for determination.
- STEP 5. Arbitration:
- (a) Due notice of submission to arbitration shall consist of written notice to the Employer concerned if the issue is raised by the Union or, if the issue is raised by the Employer, written notice to the Union.
 - (b) The decision of the Arbitrator shall be issued within ten (10) days from the close of hearing on any matter.
 - (c) The Arbitrator shall be selected by the Union and the Employer. If the parties are unable to agree on an Arbitrator,

either the Union or the Employer or both may request a list of five (5) proposed arbitrators from the Federal Mediation and Conciliation Service. From this list, each party shall alternately scratch two (2) names, with the first party to scratch being decided by lot. The remaining name shall be the Arbitrator.

- (d) The impartial Arbitrator shall have no authority to amend, alter, add to, or subtract from this Agreement. All expenses of the Arbitrator shall be jointly and equally shared by the parties. The decision of the Arbitrator shall be final and binding and shall have the effect of a legal judgment and shall become a part of this Agreement, and each of the parties hereto agrees to abide by said decision of the Arbitrator.
- B. All time limits specified in this Section 17 may be extended by mutual consent of the parties hereto.
- C. Pending a determination of any matter in dispute, the status quo existing prior to the matter becoming a dispute shall remain in effect, except in cases involving suspensions or discharges.
- D. The parties agree that the grievance procedure set forth in this Section 17 shall be the sole and exclusive method of settling all claims, grievances or controversies arising out of the terms of this Agreement, and the Union agrees to do everything in its power to see that no other agency is utilized in attempting to enforce claims arising out of this Agreement.
- E. The provisions of the Section 17 shall not apply to any claim or demand when asserted by or on behalf of the Trustees of the UNITE HERE HEALTH and the Los Angeles Hotel Restaurant Employer-Union Retirement Funds against the Employer.
- F. The parties agree to a grievance mediation procedure on a voluntary basis. Prior to the grievance or controversy being submitted to arbitration, either party may file a written request for grievance mediation which will take place providing there is mutual agreement. The grievance mediation hearing shall be held within 30 days of said written request, unless the time limit is extended by mutual agreement in writing.

The Grievance Mediation Board shall consist of management representative(s) and Union representative(s) plus a neutral mediator who shall act as Chairperson and who shall mediate the dispute in an attempt to have the parties reach a settlement. The manager involved in the incident or circumstances giving rise to the dispute should be present at the Grievance Mediation Hearing.

The grievance mediation hearing shall be governed by the following rules: (1) The grievant shall have a right to be present at the hearing; (2) Each party shall have one (1) principal spokesperson; (3) Outside lawyers or consultants shall not participate in the hearing; (4) Any documents presented to the mediator shall be returned to the respective parties at the conclusion of the hearing; (5) Proceedings shall be informal in nature. The presentation of evidence is not limited to that presented at earlier steps of the grievance procedure. The rules of evidence shall not apply and no formal record of the hearing shall be made; (6) The mediator shall have the authority to meet separately with any person or persons but will not have the authority to compel a resolution of a grievance; (7) If no settlement is reached, the mediator shall provide the parties with an immediate written advisory decision; (8) The mediator shall state the grounds for his/her advisory decision; (9) The Grievance Mediation Board shall have no power to alter or amend the terms of this Agreement; (10) The parties agree to use the FMCS or State Conciliation Service as mediators.

As an alternative, by mutual agreement in advance of the hearing, the neutral person may be designated a mediator/arbitrator who will attempt to mediate the dispute, and in the event a mediated settlement cannot be reached, the decision of the mediator/arbitrator shall be binding on both parties.

In the event that a grievance which has been mediated by in Mediation Hearing subsequently goes to arbitration, no person serving as a mediator between these parties may serve as an arbitrator. Nothing said or done by the mediator may be referred to at arbitration. Nothing said or done by either party for the first time in the hearing may be used against them at arbitration.

Grievance Procedure Flow Chart (all are calendar days)

STEP 1: Notify the other party of a violation within 60 days of its occurrence.

STEP 2: Attempt to settle the grievance within 7 days from Step 1 notification.

STEP 3: Submit grievance in writing within 7 additional days.

STEP 4: Attempt to settle grievance within 14 days of Step 3 written grievance.

STEP 5: Refer to arbitration within 30 days after Step 4 or unsuccessful Mediation Hearing.

STEP 6: Arbitration hearing should be held as soon as possible, subject to the parties agreeing to an arbitrator and the arbitrator's availability.

OPTIONAL MEDIATION STEP: At any point in the grievance process, the parties may agree to refer the grievance to mediation. The mediation hearing should be held within 30 days of the agreement to use mediation. If mediation fails to produce a settlement, refer to arbitration (Step 6) within 30 days of the mediation hearing.

Section 18. Prohibition Against Strikes, Picketing and Boycotts

- A. The Union shall not engage in or sanction any slowdown, work stoppage, strike, picketing, boycott, or other job action during the term of this Agreement, and the Employer shall not engage in any lockout practice nor discriminate against Union employees. There shall be no wildcat strikes or strikes over safety, unless conditions present a clear, immediate, and present danger to health and safety. The Union agrees to take every action within their power to immediately terminate any strike which may occur in violation of this Section 18. Any employee actually and actively engaged in a violation of this Section 18 shall be subject to discipline by the Employer up to and including discharge.
- B. Nothing in this Agreement shall require the Union or members thereof to cross a picket line established in connection with a labor dispute involving the Employer by a Union or Unions, other than the undersigned which has been duly sanctioned by the Los Angeles County Federation of Labor, AFL-

CIO, after a hearing has been granted to the Employer. Provided, that nothing in this section shall restrict or limit in any way the right of employees covered by this Agreement, with or without the encouragement of the Union, to respect any lawful, primary picket line established by other employees of the Employer, the international union with which the Union is affiliated or any local union affiliated with that international union. Provided further that nothing herein shall restrict or limit any of the Employer's rights under the National Labor Relations Act.

- C. Any dispute arising in connection with the negotiations pertaining to subsections 16(I)(5), 20(B) (last sentence only), 20(C), 21(A), or 21(J) which cannot be resolved by the parties within a reasonable time may be submitted by either party to the Federal Mediation and Conciliation Service for adjudication according to its rules. Either party may, upon request, have the matter heard by a three-person panel, one from the Employer, one from the Union, and the Chairperson from the Federal Mediation and Conciliation Service as designated. However, before any matter shall be submitted to arbitration, the party requesting it shall give notice in writing to the other party not less than five (5) days in advance. The parties agree that when any matter is submitted to arbitration, and pending the decision thereon, no action shall be taken by either party hereto. The decision of the Arbitration shall be final and shall have the effect of legal judgment, and each of the parties hereto agrees to abide by the decision of the Arbitrator.

Section 19. USERRA Protection

The Employer shall comply with the Uniformed Services Employment and Reemployment Rights Act of 1994 ("USERRA"). Any employee covered by USERRA, including a former employee who seeks to return to active employment within five years after end of the employee's most recent period of active employment with the Employer, shall be entitled to seek enforcement of asserted USERRA rights through the grievance and arbitration procedures in Section 17 of this Agreement, provided that the employee may be required by the Employer to waive any right of court enforcement as a condition to proceeding to arbitration on the employee's USERRA claims.

Section 20. Management's Prerogatives

- A. **Management Rights.** The Employer retains all rights not expressly granted in this contract to the Union or to the employees, and the Employer is not subject to any duties which it has not expressly assumed in this Agreement; provided however that nothing contained herein shall be construed to permit the Employer to engage in conduct which is in direct conflict with the terms of this Agreement or applicable law. It is further agreed that the following enumeration of management rights shall not be deemed to exclude other rights not herein enumerated but shall be deemed representative and characteristic of the customary and usual rights which are retained by any

employer: Management rights shall include, without limitations, the following:

1. the right to hire, classify, assign, promote, lay off, recall, demote, schedule, discharge, or discipline employees according to this Agreement;
2. the right to determine the size and composition of its working force;
3. the right to determine assignments of work related to the needs of the Employer;
4. the right to cease any job and the right to expand any department or operation for business purposes, reduce any department or operation for business purposes or cease any department or operation for business purposes;
5. the right to introduce new, different, or improved methods and procedures in its operations;
6. the right to determine the services to be rendered and the processes and means of work;
7. the right to establish standards of conduct and behavior and safety regulations;
8. the right to grant merit increases, bonuses, incentive payments, or other compensation increases in excess of those required by this Agreement;
9. the right to make and enforce personnel policies and procedures as well as house, department and employee rules and regulations not in conflict with this Agreement; and
10. the right to establish and enforce reasonable standards of performance and productivity.

The Parties agree that if the Employer does not exercise particular rights reserved to it under this Agreement or chooses to exercise reserved rights in a particular way, it shall not be deemed a waiver of its prerogative to exercise such rights in the future or preclude it from exercising such rights in a different way not in conflict with this Agreement.

- B. **Scope of Bargaining.** The Employer and the Union acknowledge that during the negotiations which resulted in this Agreement, each party had the unlimited right and opportunity to make demands and proposals with

respect to any subject or matter not removed by law from the area of collective bargaining and that the understandings and the agreements arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreement. Therefore, the Employer and the Union, for the term of this Agreement, each voluntarily and unqualifiedly waives the right, and each agrees that the other shall not be obligated to bargain collectively with respect to any subject or matter not specifically referred to or covered by this Agreement, including fringe benefits, even though such subject or matter may not have been within the knowledge or contemplation of the parties at the time they negotiated or signed this Agreement. This waiver does not apply to inadvertent errors, or instances where new jobs or new job duties are established.

- C. **General Savings Clause.** It is the intent of the parties hereto to abide by all applicable Federal and State statutes covering the subject matter of this Agreement. Should any provision or provisions, including sub-parts of provisions of this Agreement be determined to be contrary to any such State and Federal law, all other provisions and sub-parts of provisions of this Agreement shall remain in full force and effect, and substitutions for the invalidated provision or sub-parts of provisions shall be immediately negotiated.

Section 21. Immigration and Diversity

- A. **General Principles.** The Union and the Employer have a mutual interest in avoiding the termination of trained employees. Accordingly, to the extent not addressed by this Agreement, at the request of the Union, the Employer will meet and discuss issues related to compliance with the Immigration Reform and Control Act and any other current or future legislation, government rules or policies related to immigrants which impact bargaining unit employees.
- B. **Non-Discrimination.** The Employer shall not discipline, discharge, or discriminate against any employee because of national origin or immigration status, or because the employee is subject to immigration or deportation proceedings, except as required to comply with the law. An employee subject to immigration or deportation proceedings shall not be discharged because of pending immigration or deportation proceedings, so long as the employee is authorized to work in the United States. If the Employer is notified that an employee has been detained or incarcerated as a result of pending immigration or deportation proceedings, the Employer will place the employee on unpaid leave of absence for a period of twelve (12) months. If the employee is released and provides appropriate work authorization documentation within the twelve (12) month period, the employee will be returned to work without loss of seniority to his/her former job classification, displacing the least senior employee in that job

classification. Employees on leave of absence under this Section shall not accrue vacation, PTO, or other benefits during the leave of absence.

The Employer shall not take any adverse action against an employee because of changes to the employee's name or social security number, provided that the employee can provide acceptable proof of correct identity and is authorized to work in the United States.

C. **Workplace immigration enforcement.** In order that the Union can take steps to protect the rights of its members, and unless it is legally prohibited from doing so, the Employer shall:

1. Notify the Union by facsimile and electronic mail immediately, but no later than within twenty-four (24) hours of receipt, if it receives any type of search and/or arrest warrant, administrative warrant, subpoena, or other request for documents from the Department of Homeland Security ("DHS") that does not relate only to specific employees.
2. Unless objected to by the affected employee, notify the Union by facsimile and electronic mail immediately, but no later than within twenty-four (24) hours of receipt, of a search and/or arrest warrant, an administrative warrant or subpoena, or other request for documents from DHS that relate to specific employees. The Union agrees that it shall keep confidential any information it obtains pursuant to this provision and that it will use any such information solely to represent and/or assist the affected employee(s) in regard to the DHS matter.
3. Refuse admittance of any agents of the DHS who do not possess a search and/or arrest warrant, administrative warrant, subpoena, or other legal process signed by a federal judge or magistrate, unless the Employer is otherwise required by law to admit such persons.
4. Permit inspection of I-9 forms or documents other than the I-9 forms by DHS or DOL only after a minimum of three days' written notice or other such period of time as provided by law or where such inspection is otherwise in accordance with the provisions of this Section. The Employer also shall permit DHS to inspect I-9 forms only if and when compelled to do so by a valid written notice, arrest, search and/or administrative warrant, subpoena, or other legal process, or as otherwise required by law. The Employer shall not provide documents other than the I-9 forms to the DHS for inspection or reveal to DHS the names, addresses or immigration status of any employees in the absence of a search warrant or subpoenas signed by a federal judge or magistrate or where otherwise required by law.

If the Employer is issued a DHS administrative subpoena for documents other than I-9 forms, the Employer will work with the Union to ensure that the Employer's response to the subpoena does not exceed that which is required by law.

5. To the extent legally possible, the Employer shall offer a private setting for questioning of employees by DHS.
6. If DHS notifies the Employer that certain employees do not appear to be authorized for employment, the Employer will provide the affected employees with the maximum amount of time permitted by law to present documents to establish employment authorization.

D. Re-Verification of Status

1. The Employer shall not require or demand proof of citizenship or immigration status, except as required by 8 USC § 1324a or as otherwise required to do so in order to comply with the law. No employee employed continuously since November 6, 1986 or whose circumstances constitute "continuing employment" as defined in 8 CFR § 274a.2(b)(1)(viii) shall be required to provide such proof.
2. The Employer shall not retain hard copies of employees' identity and work authorization documents.
3. In the event of a sale of the business or its assets, the Employer shall offer to transfer the I-9 forms of its employees to the new employer or, at the Employer's option, to jointly maintain the I-9 forms of its employees with the successor employer for the period of three (3) years, after which the successor employer shall maintain said forms.

E. Social Security Discrepancies. Subject to applicable law, in the event that the Employer receives notice from the Social Security Administration ("SSA") indicating that one or more of the bargaining unit employee names and Social Security Number ("SSN") that the Employer reported on the Wage and Tax Statement Forms ("Forms W-2") for the previous year do not agree with SSA's records, or any other notice of a discrepancy with an employee's social security number, the Employer shall:

1. provide a copy of the notice to the employee and the Union upon receipt, unless objected to by the affected employee;
2. not take any adverse action against any employee listed on the notice solely because of the receipt of a no-match letter or other notice of discrepancy;

3. not require that an employee listed on the notice present a Social Security card for review, complete a new I-9 form, or provide new or additional proof of work authorization; and
4. not contact the SSA or any other governmental agency, solely as a result of receiving a no-match letter from the SSA.

F. Seniority for Immigration-Related Issues.

1. In the event that an employee does not provide adequate proof that he/she is authorized to work in the United States following his/her probationary or introductory period, and his/her employment is terminated for this reason, or if an employee is given the choice and chooses to resign in lieu of being terminated for the foregoing reason, the Employer agrees to immediately reinstate the employee to his/her former position, without loss of prior seniority, but seniority does not continue to accrue during the period of termination, upon the employee providing proper work authorization within twelve (12) months from the date of termination. If the employee produces proper work authorization within ninety (90) days of the date of termination or resignation in lieu of termination for not providing adequate proof that he/she is authorized to work in the United States following his/her probationary or introductory period, the employee shall be immediately reinstated to his/her former shift and station, without loss of prior seniority.
2. If the employee needs additional time to obtain his work authorization, the Employer will rehire the employee into the next available opening in the employee's former classification, as a new hire without seniority, upon the employee providing proper work authorization within a maximum of eighteen (18) additional months. The parties agree that such employees would be subject to a probationary period in this event.
3. The Employer will furnish a personalized letter stating the employee's rights and obligations under this Section to any employee terminated or who resigned in lieu of termination because he/she has not provided adequate proof he/she is authorized to work in the United States.

G. Limited-English Proficient Workers.

1. While English is the language of the workplace, the Employer recognizes the right of employees to use the language of their choice when speaking among themselves during work hours provided that such conversations are conducted in a manner that is respectful of

guests and other employees and is consistent with quality guest service.

2. Upon request of the employee, the Employer shall provide interpreters from its staff, where such staff is available, for employees not fluent in English during any investigative interview that may lead to discipline or discharge. Where the Employer is unable to so provide an interpreter, the Union may provide an interpreter. In the event that an interpreter is not readily available, timeliness for issuance of the disciplinary or discharge notice shall automatically be tolled until an appropriate interpreter is available.
3. The Employer shall work with the Union to provide English as a second language and literacy classes to employees.

H. **Legality.** The Union and the Employer agree that this Agreement shall not be interpreted to cause or require the Employer to violate IRCA, 8 USC § 1324a, or any other applicable law. Except as required by law the Employer agrees not to permit any private or public entity to conduct an audit or inspection of its Forms I-9 or personnel records.

I. **E-Verify.** The Employer agrees not to use the E-Verify system or any other similar federal program for non-probationary employees, except if required to do so as a federal contractor or by other law.

J. **Leaves of Absence.**

1. In the event that the Employer determines that a post-introductory employee cannot or has not provided acceptable documentation of the employee's right to work in the United States, the Employer shall notify the Union by electronic mail. Upon the Union's request, the Employer shall meet with the Union to discuss the nature of the issue to see if a resolution can be reached. Whenever possible, the meeting shall take place before any action is taken by the Employer, provided, however, the Union acknowledges and agrees that the Employer may take any action which is required to ensure the Employer's compliance with any and all immigration and/or employment authorization statutes, laws, and regulations.
2. The Employer will provide an employee with a least sixty (60) days' notice that the documents provided by the employee demonstrating work authorization are scheduled to expire and that the employee will need to re-verify their I-9 documentation and provide valid evidence of continued work authorization. Such notice will be provided to an employee in writing.

3. Upon request, employees shall be released for up to five (5) unpaid working days during the term of this Agreement in order to attend to U.S. Citizenship and Immigration Service ("USCIS") proceedings and any related matters for the employee only. The Employer may request verification of such absence.
 4. The Employer shall grant a leave of absence of up to five (5) years to any non-probationary employee who has lost work authorization status solely as a result of change in DACA, DAPA, or TPS Status. If the employee obtains appropriate work authorization within the five-year period, the employee must provide documentation of the work authorization and return to work within six (6) months after obtaining it or forfeit the leave provided in this subsection. The reinstated employee will displace the least senior employee in the employee's former job classification. An employee will not accrue vacation, PTO, or the other benefits based upon particular Plan policies during such absence.
- K. **Federal Contracts.** If the Employer enters into a Federal contract that requires the use of E-Verify for non-probationary employees, the Employer will work with the Union to ensure that the scope of the E-Verify use does not exceed that which is required by law.
- L. **Management Training.** The Employer shall train all managers and supervisors on this section within sixty (60) days of signing this Agreement, and thereafter within six (6) months of hiring any new manager or supervisor.
- M. **Paid Citizenship Holiday.** On the day that an employee is sworn in as a U.S. citizen, the employee will be excused from work and will be compensated for all lost time at the same rate used for holiday pay.
- N. **Diversity.**
1. **Commitment to Diversity.** The Employer and the Union are committed to a comprehensive approach to a diverse workforce, practicing equal employment opportunity and engaging in affirmative efforts to create and maintain an environment that supports and encourages the contribution of all employees. We pledge to have a productive and hospitable environment for current employees and potential applicants that invite a workforce reflective of the diversity in the greater Los Angeles area. The Employer is committed to respect the needs of the current workforce, which includes immigrants from many different parts of the world. We are proud of that diversity and the benefits it brings to our hotel and the hotel industry in general.

2. **Affirmative Steps.** In addition, the Employer shall take affirmative steps to further diversify the workforce to properly reflect the Los Angeles area, and in particular diversify with African-American workers, by:
- a. Cooperating with a diversity ombudsperson named by the Union.
 - b. Participating in good faith in a Diversity in the Workplace Taskforce, with equal numbers of decision-making management representatives to be selected by the Employer, and decision-making Union representatives and community representatives to be selected by the Union. The Taskforce will work together to analyze hiring, transfer and promotion practices and patterns and to carry out the mission described below.
 - c. The Taskforce shall meet at least quarterly.
 - d. The mission of the Taskforce shall be to:
 - (i) Develop an outreach program that informs and educates the community about job opportunities and availability in the hotels covered by agreements with the Union;
 - (ii) Review and make recommendations regarding the application and hiring procedures that may present obstacles to members of the African-American and broader diverse community members;
 - (iii) Work with existing community job development and training programs that will assist Employer in identifying potential job applicants;
 - (iv) Propose use of the resources available in the Hospitality Industry Training and Education Fund to further the efforts of the Taskforce;
 - (v) Propose long-term solutions to any immigration-related problems in the workplace that may arise;
 - (vi) Track the results of these efforts for the duration of this Agreement in a formal report twice yearly to the Employer and to the Union;

(vii) The work of this Taskforce will not supersede any rights of the Employer and the Union in this Agreement.

- e. The mission of the ombudsperson shall be to serve as an ex-officio member of the Taskforce, with full access to its deliberations and records; to meet with the responsible executives of the Employer, with or without the presence of Union representatives at the ombudsperson's discretion, to discuss specific complaints by employment applicants about the Employer's hiring practices or decisions; to recommend to the Employer specific measures to deal with these complaints; to publicize on mutual agreement findings and conclusions about these complaints and other Taskforce findings; and to recommend to the Taskforce long-term, systemic policies to insure diversity. It is understood that the ombudsperson and other Taskforce members will take appropriate measures to protect the confidentiality of the personnel matters presented to them and will not undertake activity that may increase the Employer's risk of adverse publicity or legal action. Implementation of this subsection 21(N) shall not cause any employee or applicant to suffer a loss of any privacy right or obligate the Employer or the Union to provide any information to which either was not previously obligated. Further, nothing herein shall require the Employer or the Union to undertake any action that would violate any federal, state, or local law.

M. **Hospitality Training Academy.** The Employer shall cooperate with the Hospitality Training Academy ("HTA") in its hiring programs, including participation in apprenticeship programs as follows:

1. The Employer hereby subscribes to the provisions of the apprenticeship standards formulated and registered by the HTA with the United States Department of Labor and the State of California Department of Apprenticeship Standards for HTA apprenticeship programs. The Employer agrees to carry out the intent and purpose of said standards and to abide by the rules and decisions of the Sponsor/HTA established under these apprenticeship standards.
2. The Employer has received a copy of the standards and has read and understands them, and hereby requests certification to hire apprentices under the provisions of these standards, with all attendant rights and benefits thereof, until cancelled voluntarily or revoked by the registration agency. On-the-job, the apprentice is hereby guaranteed assignment to a skilled and competent journey

worker/mentor and is guaranteed that the work assigned to the apprentice will be rotated so as to ensure training in all phases of work.

3. The Employer further agrees to consider the apprentices for employment to the extent appropriate employment opportunities are available.
4. During their probationary period, apprentices will be paid the probationary rate of pay set out in this Agreement. Upon completing their probationary period, apprentices will be paid twenty-five cents (\$0.25) less than the full classification rate for the applicable classification until the apprentice completes six (6) months of employment, to be measured from their original hire date. Upon completing six (6) months of employment, the apprentice will be paid the full hourly pay of the applicable classification. The Employer may pay the apprentice more than the rate outlined in this subsection, but must still provide wage increases of at least twenty-five cents (\$0.25) upon completion of the probationary period and upon completion of six (6) months of employment.

Section 22. Background/Credit Reports

The parties recognize that the Employer is permitted to continue its existing background investigation process for the safety and security of all employees and hotel guests. However, the Employer shall not without the Union's agreement seek to obtain or review the financial credit history or reports concerning any employee covered by this Agreement.

Section 23. Labor-Management Cooperation

Recognizing the mutual goals of a successful hotel operation which provides both superior service for guests and fair and equitable working conditions for employees, the parties pledge to work together to achieve said goals for their mutual benefit. In furtherance of this, the parties agree that prior to anyone functioning in a labor relations role for the Employer or as a shop steward for the Union, such persons shall first attend a training course conducted by the Federal Mediation and Conciliation Service on positive and effective labor relations.

Section 24. Pregnancy Protection

If an employee so requests, and consistent with both the employee's and the Employer's obligations under applicable law, the Employer shall provide a reasonable accommodation related to such employee's pregnancy, childbirth, or related conditions, including but not limited to the need to express milk for a nursing child. "Reasonable accommodation" may include, but not be limited to, more frequent or longer breaks, time

off to recover from childbirth, temporary transfer to a less strenuous or less hazardous position, job restructuring, light duty, additional break time, private non-bathroom space to express breast milk, and assistance with manual labor and modified work schedules. (See also subsection 14(J)(5).) Any time off provided as a reasonable accommodation will run concurrently with any protected leave the employee is otherwise entitled to take for the condition under applicable law.

Section 25. Voting Rights

Full-time employees who lack sufficient time outside scheduled work hours to vote in local, state, and federal elections may take up to two (2) hours off work with pay for this purpose. Paid time off will be provided at the beginning or end of the employee's regular shift, whichever will allow the most free time for voting and the least time off of work. Employees requiring time off must notify their supervisor two (2) days before voting and must present a voter's receipt to their supervisor upon return to work from voting.

Section 26. Technology

- A. Technological change includes the use of automation, machines, computers, robots, software, tablets, or other handheld devices that replace or substitute for or materially increase or decrease the type or manner of work performed by employees in the Employer's workplace.
- B. The Employer shall provide the Union at least a sixty (60) day notice before implementation of any plans to upgrade, modify, improve, or extend technology currently in use by bargaining unit employees that are made after the effective date of this Agreement. The Employer shall provide the Union at least a sixty (60) day advance notice prior to the implementation of any new technological change, occurring after the effective date of this Agreement, that replaces or substitutes for or materially increases or decreases the type or manner of work performed by employees in the Employer's workplace.
- C. If the Union requests to bargain, it must do so within fifteen (15) days of the Employer's notice and shall include any information requests with such notice. The Employer shall promptly negotiate the impact of the new technology on the bargaining unit employees and the work they perform. Upon notice of a demand to negotiate, the process shall be governed by the following rules:
 - 1. **Information.** The Employer shall provide any information requested by the Union within twenty (20) days of receipt of the notice. The Union shall be afforded up to ten (10) days following receipt of requested information to meet with affected employees.

2. **Negotiation.** At the conclusion of the initial information gathering period, the parties shall meet over the following thirty (30) days in an attempt to reach a resolution.
 3. **Mediation.** Should the parties fail to resolve the issue within thirty (30) days from when the negotiation period opens, either party may request the services of a federal mediator.
 4. **Implementation.** The Employer shall not implement any technology during such negotiations, but the Employer shall have the right to implement the technology upon the expiration of this ninety (90)-day period. The Employer shall not implement any technology unless the Employer has carried out these duties to the Union.
- D. This notice and negotiation process shall be the sole and exclusive procedure for resolving disputes over the implementation of new technology. Any disputes arising out of this process shall be subject to the grievance and arbitration process under this Agreement. The arbitrator, however, shall have no authority to order any particular outcome to the bargaining process.
- E. Any employee displaced due to technological change shall be entitled to recall to the classification from which the employee was displaced for twenty-four (24) months following the date of displacement and to preference for other job openings at the hotel where the new technology is implemented in or out of the bargaining unit, after all other preferences possessed by incumbent employees at the hotel have been exercised but before new employees are hired, provided the employee is qualified for the position or can be qualified in a reasonable period of time with adequate training provided by the Employer. Preference in hiring also will be given to any employee displaced due to technological change, who applies for another position for which he or she is qualified, at other Employer-operated hotels subject to a collective bargaining agreement with the Union.
- F. The Employer shall make all non-supervisory job postings electronically accessible to employees laid off under this Section 26 and to the Committee to assist employees in their job searches.
- G. While employees are waiting for an offer of a permanent position, the Employer shall offer all available extra work within their classification to them in order of classification seniority.
- H. If an employee displaced under this Section 26 is recalled to another position within the Union's bargaining unit at the hotel, the employee shall retain his/her hotel seniority and continuous service for vacation/PTO purposes, or to a position outside the bargaining unit represented by the

Union, continuous service with the Employer shall be recognized for vacation/PTO and health insurance purposes. If an employee displaced by technological change is hired into a new position at other Employer-operated hotels subject to a collective bargaining agreement with the Union, the provisions of that hotel's collective bargaining agreement shall apply.

- I. No employee who has completed his or her probationary period and is recalled pursuant to this subsection shall be required to complete a new probationary period but if the employee cannot perform satisfactorily the work on the shift or station to which recalled he or she may transfer or be transferred back to layoff status within thirty (30) days after his/her date of recall.
- J. The Employer shall continue to make contributions to the applicable health insurance plan for any employee displaced as a result of the implementation of new technology, at the minimum level necessary to maintain existing benefits under the applicable health plan for six (6) months following the date of displacement.
- K. If an employee displaced under this Section 26 elects not to seek another position with the Employer at the outset of the displacement or is not offered another position during the twenty-four (24) month job search period, he/she will be permanently laid off and offered the opportunity to execute a severance agreement to include a payment equal to one (1) week of pay for every year of service, subject to all legally required taxes and withholdings and a general release of claims.
- L. If technological changes reduce the duties of a classification without eliminating them, the classification shall continue to exist, but the Employer may adjust staffing levels, full or part-time status, or after bargaining with the Union the Employer may consolidate existing classifications or distribute the remaining duties to other bargaining unit classifications. If new technology performs functions previously performed by bargaining unit employees and requires human operation of machines, the machines shall be operated by bargaining unit employees and the Employer shall train employees in the affected classification to operate new technology.

Section 27. Employee Safety

- A. The Employer shall provide a safety alarm to each employee assigned to work in a guest room without other employees present, at no cost to the employee. Each employee shall be required to carry the device with him or her at all times when working and to utilize such device when he or she believes there is an ongoing crime, harassment, or other emergency in the employee's presence. The devices shall be able to summon immediate on scene assistance to their location from another employee or security guard.

The purpose of this section is to protect employee safety. The device may not be used to track or discipline for productivity-related issues. The employee in danger may cease work and leave the immediate area where the incident occurred to await the arrival of the employee or security personnel responsible for providing immediate assistance. Such systems shall be installed in the hotel no later than the end of the 2019 calendar year.

- B. The Employer shall record an accusation that a guest has made an unwanted sexual advance, request for sexual conduct, or other verbal or physical conduct of a sexual nature towards an employee or towards another guest of the establishment, including the name of the guest. The Employer shall inquire for the name of the guest if that information is not included in the initial notice to the Employer. If the Employer is unable to learn the name of the guest, the Employer shall learn and record as much identifying information about the guest as is reasonably possible. The Employer shall maintain a list of all guests so accused for at least five (5) years from the date of the most recent accusation against the guest. Guest as used throughout this section means registered guest, others occupying guest rooms with registered guests, and visitors invited to guest rooms by a registered guest or other occupant of a guest room. Upon request, the Employer shall reassign the employee to a different floor or work area away from the guest for the entire duration of the guest's stay. If the Employer learns that any guest on the list is staying at the hotel, the Employer shall notify the Union and any housekeeper, room server or any other employees assigned to work in this guest's room of the same prior to the start of their scheduled shift, and shall warn the employees to exercise caution when entering that designated room during the time the guest is staying at the hotel. The Employer reserves the right to assign a non-bargaining unit employee to service the room.
- C. Upon receipt of an allegation that a guest has committed sexual assault or other criminal conduct against an employee, the Employer shall promptly contact local law enforcement with jurisdiction, immediately notify the employee that law enforcement has been contacted, that he or she may be asked to provide a statement, and that they have a right to decline to do so, and provide the employee with sufficient paid time to provide a police statement, and shall fully cooperate with any investigation into the incident undertaken by the agency.
- D. When an allegation that a guest has committed sexual assault or criminal conduct against an employee is supported by a police report and statement made by such employee under penalty of perjury, the Employer shall inform the guest that he or she is prohibited from returning to the hotel, and shall maintain such prohibition for at least three (3) years from the date of the incident alleged in the statement.

- E. There shall be no retaliation against any employee for seeking to enforce his or her rights under this section by any lawful means or for otherwise asserting rights under this section.

Section 28. Ordinance Waiver

The Employer and the Union agree that this is a bona fide collective bargaining agreement. The Union hereby waives for the term of this Agreement all provisions of the City of Los Angeles Citywide Hotel Worker Minimum Wage Ordinance (Los Angeles Ordinance No. 183241) because this Agreement provides a superior package of wages, benefits, and job protections to the employees the Union represents.

Section 29. Duration of this Agreement

This Agreement shall be in full force and effect from December 1, 2018, through June 30, 2023, and shall automatically be renewed for one year at a time thereafter unless terminated or reopened for alteration in the manner hereinafter provided; either party to the Agreement may terminate it or reopen it for new negotiations on June 30, 2023 by giving notice in writing to the other party not less than sixty (60) days prior to June 30, 2023, and in the absence of notice in writing given in the manner hereinafter provided, the Agreement shall be renewed for another calendar year but may be terminated or reopened for negotiations by either party by giving not less than sixty (60) days' notice in writing prior to any subsequent annual anniversary date, and the Agreement shall be renewed automatically from year to year thereafter until terminated by one of the parties hereto in the manner provided on the annual anniversary date.

SIGNED THIS 19 DAY OF July 2022

UNITE HERE! LOCAL 11

INTERSTATE HOTELS, LLC as agent for
TODAY'S IV, Inc. d/b/a THE WESTIN
BONAVENTURE HOTEL & SUITES,
LOS ANGELES


Kurt P. Petersen, Co-President
Karen Kovach, VP Legal

Schedule A

The following tables list the wages for each classification during the term of this Agreement.

For all classifications, the following rules apply:

1. **EXTRA WORK:** \$2.00 per day above scale. The extra work differential is applicable to all extra employees hired to work less than four days per calendar week, and to all Room Attendants assigned to work less than four days per calendar week.
2. **NIGHT SHIFT DIFFERENTIAL:** (work starting at or after 8:00 PM): In all classifications, \$2.60 per day above scale, which shall be increased effective January 1, 2021 to \$1.00 per hour above scale. However, night bellpersons shall be paid \$2.00 per hour above scale.
3. **SHORT SHIFT EMPLOYEES** who work on the seventh consecutive day shall be paid at the rate of double time as per subsection 9(F) (all employees except extra cooks).
4. **ON ALL SPLIT SHIFTS:** minimum call for breakfast or lunch is three hours, dinner is four hours.
5. **NEW YEAR'S EVE EXTRA WORK:** \$2.00 per day above scale.
6. **MINIMUM WAGE:** The Employer shall ensure that all employees receive the legally required minimum wage for all hours worked, including rest and meal periods, but not including PTO or non-worked holidays. As provided in subsections 15(G) and 15(H), service charges shall be credited toward the difference between the employee's hourly wage rate set forth below and the required minimum wage to be paid by the Employer.

COOKS							12/10/2021	06/01/2022	12/01/2022	06/01/2023
Senior Lead Cook							\$29.00	\$29.55	\$30.10	\$30.65
COOKS	12/01/2018		01/01/2020	06/01/2020	12/01/2020	06/01/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
Lead Cook	\$24.80		\$25.30	\$25.80	\$26.30	\$26.85	\$27.40	\$27.95	\$28.50	\$29.05
Cook	\$23.96		\$24.46	\$24.96	\$25.46	\$26.01	\$26.56	\$27.11	\$27.66	\$28.21
Saucier	\$23.96		\$24.46	\$24.96	\$25.46	\$26.01	\$26.56	\$27.11	\$27.66	\$28.21
Head Garde Manger	\$23.96		\$24.46	\$24.96	\$25.46	\$26.01	\$26.56	\$27.11	\$27.66	\$28.21
Garde Manger	\$23.20		\$23.70	\$24.20	\$24.70	\$25.25	\$25.80	\$26.35	\$26.90	\$27.45
Pastry Cook	\$22.83		\$23.33	\$23.83	\$24.33	\$24.88	\$25.43	\$25.98	\$26.53	\$27.08
Baker	\$22.83		\$23.33	\$23.83	\$24.33	\$24.88	\$25.43	\$25.98	\$26.53	\$27.08
Pantry	\$22.83		\$23.33	\$23.83	\$24.33	\$24.88	\$25.43	\$25.98	\$26.53	\$27.08

OUTLET EMPLOYEES	Los Angeles Minimum Wage					
Server	12/01/2018	07/01/2019		07/01/2020		07/01/2022
8 hour shift	\$13.25	\$14.25		\$15.00		+ CPI
Short Shift (4 to 6 hours)	\$14.58	\$15.68		\$16.50		+ CPI

	12/01/2018		01/01/2020		01/01/2021		01/01/2022		01/01/2023
*Dining Room Attendant (Bus Attendant)	\$17.00		\$17.50		\$18.00		\$18.50		\$18.50

	12/01/2018		01/01/2020		01/01/2021		01/01/2022		01/01/2023
*Overscale Increases	\$0.55		\$0.55		\$0.50		\$0.40		\$0.40

	12/01/2018		01/01/2020	06/01/2020	12/01/2020	06/01/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
Buffet Runner/Attendant	\$20.30		\$20.80	\$21.30	\$21.80	\$22.35	\$22.90	\$23.45	\$24.00	\$24.55
Barista	\$20.96		\$21.46	\$21.96	\$22.46	\$23.01	\$23.56	\$24.11	\$24.66	\$25.21
Cashier/Order Taker	\$21.34		\$21.84	\$22.34	\$22.84	\$23.39	\$23.94	\$24.49	\$25.04	\$25.59
Greeter	\$21.34		\$21.84	\$22.34	\$22.84	\$23.39	\$23.94	\$24.49	\$25.04	\$25.59

[illegible]

	California Minimum Wage + Service Charges		
Server (Room Service)	01/01/2019		01/01/2020
8 hour shift	\$12.00		\$13.00
Short Shift (4 to 6 hours)	\$13.20		\$14.30

BANQUETS		Hourly Wage + Service Charges				
Lead Banquet Captain		05/19/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
8 Hour Shift		\$27.00	\$27.55	\$28.10	\$28.65	\$29.20
		California Minimum Wage + \$1.00 + Service Charges				
Captains	01/01/2019	01/01/2020	01/01/2021	01/01/2022	01/01/2023	
8 Hour Shift	\$13.00	\$14.00	\$15.00	\$16.00	\$16.00	

Servers	California Minimum Wage + Service Charges									
Breakfast, Lunch, or Tea beginning before 4:00 p.m.; 3 hours minimum	\$12.00		\$13.00		\$14.00		\$15.00		\$15.00	
Dinner 4 hours minimum	\$12.00		\$13.00		\$14.00		\$15.00		\$15.00	
Dinner-Dance - 8 hours or less	\$12.00		\$13.00		\$14.00		\$15.00		\$15.00	
Hourly Overshift Rate for 3-4 hour shifts	\$12.00		\$13.00		\$14.00		\$15.00		\$15.00	
Hourly Overtime Rate for Work Over 8 hours*	\$18.00		\$19.50		\$21.00		\$22.50		\$22.50	

[illegible]

				CA Minimum Wage + \$3.50	
	12/01/2018	01/01/2020	01/01/2021	01/01/2022	01/01/2023
*Banquet Buspenderson	\$17.00	\$17.50	\$18.00	\$18.50	\$18.50
	12/01/2018	01/01/2020	01/01/2021	01/01/2022	01/01/2023
*Overscale Increases	\$0.55	\$0.55	\$0.50	\$0.40	\$0.40

BARTENDERS	
Working Head Bartender: highest classification rate (minimum 10% above the highest rate of pay). Duties include assigning bartenders to stations.	

		CA Minimum Wage + \$3.00			
	12/01/2018	01/01/2020	01/01/2021	01/01/2022	01/01/2023
*Bartender					
8 hour shift	\$17.00	\$17.25	\$17.50	\$18.00	\$18.00
Banquet short shift (4-6 hours)	\$18.70	\$18.98	\$19.25	\$19.80	\$19.80
No short shift bartender shall be permitted to work a split shift or two shifts in the same day.					

		CA Minimum Wage + \$3.75			
	12/01/2018	01/01/2020	01/01/2021	01/01/2022	01/01/2023
*Barback	\$17.00	\$17.50	\$18.00	\$18.75	\$18.75
	12/01/2018	01/01/2020	01/01/2021	01/01/2022	01/01/2023
*Overscale Increases	\$0.55	\$0.55	\$0.50	\$0.40	\$0.40

STEWARDING		10/12/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
Senior Lead Steward		\$28.00	\$28.55	\$29.10	\$29.65	\$30.20

MISCELLANEOUS KITCHEN EMPLOYEES	12/01/2018	01/01/2020	06/01/2020	12/01/2020	06/01/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
Assistant Kitchen Steward (Supervisor)	\$21.38	\$21.88	\$22.38	\$22.88	\$23.43	\$23.98	\$24.53	\$25.08	\$25.63
Dishwasher	\$21.15	\$21.65	\$22.15	\$22.65	\$23.20	\$23.75	\$24.30	\$24.85	\$25.40
Silver Worker	\$21.15	\$21.65	\$22.15	\$22.65	\$23.20	\$23.75	\$24.30	\$24.85	\$25.40
Potwasher	\$21.15	\$21.65	\$22.15	\$22.65	\$23.20	\$23.75	\$24.30	\$24.85	\$25.40
General Cleaner	\$21.15	\$21.65	\$22.15	\$22.65	\$23.20	\$23.75	\$24.30	\$24.85	\$25.40
Trash	\$21.15	\$21.65	\$22.15	\$22.65	\$23.20	\$23.75	\$24.30	\$24.85	\$25.40
Night Porter	\$21.15	\$21.65	\$22.15	\$22.65	\$23.20	\$23.75	\$24.30	\$24.85	\$25.40

Lead Banquet Runner	\$22.38	\$22.88	\$23.38	\$23.88	\$24.43	\$24.98	\$25.53	\$26.08	\$26.63
Banquet Runner	\$21.38	\$21.88	\$22.38	\$22.88	\$23.43	\$23.98	\$24.53	\$25.08	\$25.63

CAFETERIA	12/01/2018	01/01/2020	06/01/2020	12/01/2020	06/01/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
Cook	\$23.47	\$23.97	\$24.47	\$24.97	\$25.52	\$26.07	\$26.62	\$27.17	\$27.72
Dish-up	\$22.54	\$23.04	\$23.54	\$24.04	\$24.59	\$25.14	\$25.69	\$26.24	\$26.79
Line Server	\$20.63	\$21.13	\$21.63	\$22.13	\$22.68	\$23.23	\$23.78	\$24.33	\$24.88
Cafeteria Bus Attendant	\$19.55	\$20.05	\$20.55	\$21.05	\$21.60	\$22.15	\$22.70	\$23.25	\$23.80

BELL/DOOR	12/01/2018	07/01/2019	07/01/2020	07/01/2021	01/01/2022	01/01/2023
Working Bell Captain	\$15.25	\$16.25	\$18.00	\$19.00	\$19.00	\$19.00

	12/01/2018	07/01/2019	07/01/2020	07/01/2021	01/01/2022	01/01/2023
Bell Person	\$14.25	\$15.25	\$17.00	\$18.00	\$18.00	\$18.00
Door Attendant	\$14.25	\$15.25	\$17.00	\$18.00	\$18.00	\$18.00

Door Attendants shall be paid two times (2x) their hourly rate when assigned to the Figueroa door when the Figueroa driveway is closed.

HOUSEKEEPING	08/15/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
Dispatch Supervisor	\$27.00	\$27.55	\$28.10	\$28.65	\$29.20

HOUSEKEEPING	12/01/2018	01/01/2020	06/01/2020	12/01/2020	06/01/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
Seamstress-Sewer	\$20.92	\$21.42	\$21.92	\$22.42	\$22.97	\$23.52	\$24.07	\$24.62	\$25.17
Room Attendant	\$20.92	\$21.42	\$21.92	\$22.42	\$22.97	\$23.52	\$24.07	\$24.62	\$25.17
Deep General Clean / General Clean Public Areas	\$21.42	\$21.92	\$22.42	\$22.92	\$23.47	\$24.02	\$24.57	\$25.12	\$25.67
Floorpersons (Overnight)	\$21.28	\$21.78	\$22.28	\$22.78	\$23.33	\$23.88	\$24.43	\$24.98	\$25.53
Uniform Attendant	\$21.18	\$21.68	\$22.18	\$22.68	\$23.23	\$23.78	\$24.33	\$24.88	\$25.43
Housekeeping Runner	\$21.15	\$21.65	\$22.15	\$22.65	\$23.20	\$23.75	\$24.30	\$24.85	\$25.40
Service Express Runner	\$21.15	\$21.65	\$22.15	\$22.65	\$23.20	\$23.75	\$24.30	\$24.85	\$25.40
Public Area Attendant	\$20.92	\$21.42	\$21.92	\$22.42	\$22.97	\$23.52	\$24.07	\$24.62	\$25.17

Short shift "Turn Down Service" (4 hour minimum call)	\$22.81
Houseperson	\$21.15
Handyperson (Utility and / or Shampoo)	\$21.58
Storeroom Employee/Receiving Clerk	\$21.38
Lobby Attendant	\$20.92
Housekeeping Supervisor	\$21.92
Combination Linen Room/Clerical/Dispatcher (applicable to employees who spend 4 or more hours doing linen room work)	\$21.18

\$23.31	\$23.81	\$24.31	\$24.86	\$25.41	\$25.96	\$26.51	\$27.06
\$21.65	\$22.15	\$22.65	\$23.20	\$23.75	\$24.30	\$24.85	\$25.40
\$22.08	\$22.58	\$23.08	\$23.63	\$24.18	\$24.73	\$25.28	\$25.83
\$21.88	\$22.38	\$22.88	\$23.43	\$23.98	\$24.53	\$25.08	\$25.63
\$21.42	\$21.92	\$22.42	\$22.97	\$23.52	\$24.07	\$24.62	\$25.17
\$22.42	\$22.92	\$23.42	\$23.97	\$24.52	\$25.07	\$25.62	\$26.17
\$21.68	\$22.18	\$22.68	\$23.23	\$23.78	\$24.33	\$24.88	\$25.43

LAUNDRY	12/01/2018
Floor Supervisor	\$22.29
Washer	\$21.40
Sorter	\$20.88
Laundry Janitor	\$20.88
Dry Cleaner/Spotter	\$21.92
Laundry/Valet Presser	\$21.66
Laundry/Valet Attendant	\$20.88

01/01/2020	06/01/2020	12/01/2020	06/01/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
\$22.79	\$23.29	\$23.79	\$24.34	\$24.89	\$25.44	\$25.99	\$26.54
\$21.90	\$22.40	\$22.90	\$23.45	\$24.00	\$24.55	\$25.10	\$25.65
\$21.38	\$21.88	\$22.38	\$22.93	\$23.48	\$24.03	\$24.58	\$25.13
\$21.38	\$21.88	\$22.38	\$22.93	\$23.48	\$24.03	\$24.58	\$25.13
\$22.42	\$22.92	\$23.42	\$23.97	\$24.52	\$25.07	\$25.62	\$26.17
\$22.16	\$22.66	\$23.16	\$23.71	\$24.26	\$24.81	\$25.36	\$25.91
\$21.38	\$21.88	\$22.38	\$22.93	\$23.48	\$24.03	\$24.58	\$25.13

FRONT OFFICE	12/01/2018
Mail & Information Clerk	\$22.12
Rooms Coordinator	\$23.19
Airline Coordinator	\$22.69
Front Desk Agent	\$22.69
**PBX Operator/Service Express Agent	\$21.34
PBX Supervisor	\$21.68

01/01/2020	06/01/2020	12/01/2020	06/01/2021	12/01/2021	06/01/2022	12/01/2022	06/01/2023
\$22.62	\$23.12	\$23.62	\$24.17	\$24.72	\$25.27	\$25.82	\$26.37
\$23.69	\$24.19	\$24.69	\$25.24	\$25.79	\$26.34	\$26.89	\$27.44
\$23.19	\$23.69	\$24.19	\$24.74	\$25.29	\$25.84	\$26.39	\$26.94
\$23.19	\$23.69	\$24.19	\$24.74	\$25.29	\$25.84	\$26.39	\$26.94
\$21.84	\$22.34	\$22.84	\$23.39	\$23.94	\$24.49	\$25.04	\$25.59
\$22.18	\$22.68	\$23.18	\$23.73	\$24.28	\$24.83	\$25.38	\$25.93

**Service Express Agents who perform dispatch duties shall receive a premium of \$0.50 per hour.

Memorandum of Understanding Concerning Trust Fund Increases

This Memorandum of Understanding Concerning Trust Fund Increases ("MOU") is entered into by and between the Employer and the Union to supplement the Agreement. All capitalized terms not defined herein shall have the same meaning as defined in the Agreement.

1. The Employer and the Union agree to the following total increases for benefit trust fund contributions:

1.1.20	1.1.22	4.1.22	1.1.23	Cumulative
\$0.35	\$0.47	\$0.40	\$0.80	\$2.02

Any of the above amounts allocated to Health & Welfare, HITEF, or Legal Funds will be effective with January hours and any of the above amounts allocated to the Pension Fund will be effective with April hours.

2. The Union shall allocate each of the above trust fund contribution increases in its sole discretion, but may not allocate to any fund to which the Employer has not agreed to contribute.

3. Allocations to trust fund contribution increases shall occur only on the dates set forth in Paragraph 1 above. The dollar amounts of the package increases shall not be altered by time-weighting of the effective dates of the allocations made by the Union.

4. The Agreement includes the Union's allocation for the first twenty-five months thereof. The Union shall advise the Employer of each future allocation at least thirty (30) days prior to the effective date of the allocation, provided that if the Union's notice to the Employer is less than thirty (30) days, the Employer will not be excused from paying the increases as allocated by the Union unless there is actual prejudice to the Employer by the delay and then the Employer may be excused only for a period of time equal to the length of the Union's delay in giving notice.

5. In no event shall any provision in the Agreement, any memorandum of understanding, any side letter or any other such agreement (including but not limited to any provision in any such agreement purporting to guarantee or ensure minimum or specified health and welfare contributions or benefits or minimum reserve levels) result in an annual total economic increase in excess of the amounts set forth in Paragraph 1 above. Any and all such provisions shall be modified to ensure that the Employer receives the full benefit of this paragraph.

6. Each annual total trust fund increase set forth in Paragraph 1 is an absolute maximum. Notwithstanding any change in applicable law or in conditions or circumstances, whether contemplated by the parties or not (including but not limited to changes in circumstances relating to the implementation of or modifications to applicable laws regulating health care or benefit fund funding requirements or minimum wage

payments), the amount of the annual total economic package increase shall not exceed the amounts set forth above in Paragraph 1.

7. The annual total trust fund increase shall not be increased by any actions of the plans. Each annual allocation shall be subject to any required approvals of applicable Health and Welfare, Pension, or other trust fund(s). In all circumstances in which a benefit fund requires contributions greater than those allocated by the Union (whether by operation of a rehabilitation plan, by law or otherwise), the additional required contribution shall be diverted from the wages of employees on whose behalf contributions to the funds are made or, to the extent permitted by law and by the applicable trust funds, from other benefit funds to which the Employer contributes pursuant to the Agreement. To the extent that the implementation of this MOU would result in the Employer failing to comply with minimum contribution or funding requirements or other requirements of a trust fund, or any legal requirement relating to any of the trust funds, or if for any reason any trust fund refuses to accept the terms of this MOU or the Agreement, the Union shall promptly take all necessary steps (including but not limited to agreeing to diversions from or reductions to wages) so as to permit the Employer to comply with all such requirements without any increase to any annual total trust fund package and without the Employer incurring any other costs or liabilities of any kind, provided that the Union shall in no event be responsible in whole or part for any pension fund withdrawal liability of the Employer unless the Employer's withdrawal is caused by a trust fund rejecting the Employer's continued participation because the Union failed to allocate sufficient contributions to meet the trust fund's standards.

SIGNED THIS 19 DAY OF July 2022

UNITE HERE! LOCAL 11

INTERSTATE HOTELS, LLC as agent for
TODAY'S IV, Inc. d/b/a THE WESTIN
BONAVENTURE HOTEL & SUITES,
LOS ANGELES


Kurt P. Petersen, Co-President


Karen Kovach, VP Legal

Memorandum of Understanding on Growth

This Memorandum of Understanding on Growth ("MOU") is entered into by and between the Employer and the Union to supplement the Agreement. All capitalized terms not defined herein shall have the same meaning as defined in the Agreement.

1. This MOU covers employees employed in the classifications described in Section 1 of the Agreement or in classifications called by different names when performing similar duties, if the Employer directly employs such employees ("Employees"), except that laundry employees and spa cleaning employees shall not be included if the operations are outsourced. This MOU and the definition of "Employees," as used herein, expressly excludes all employees excluded by Section 1 of the Agreement, as well as concierge, valet, and parking employees, and any other excepted classifications pursuant to Paragraph 5 of this Agreement.

2. The term "Employer" shall be deemed to include any person, firm, partnership, corporation, joint venture, or other legal entity majority-owned (more than 50%) by the Employer. Coverage of such a Property, as defined below, is conditioned upon and shall occur when the Union demonstrates that it has been authorized by a majority of the employees in the operation to represent them for the purposes of collective bargaining.

3. This Agreement shall apply only to a Property which meets either of the following definitions and which becomes operated by the Employer during the term of this MOU (i.e., the Employer signs an agreement to operate the Property after the effective date of and during the term of this MOU):

- A. A luxury or non-luxury, full-service hotel (includes a two-meal per day restaurant and banquet/catering services) within downtown Los Angeles (bounded by the Santa Monica, Pasadena, and Santa Ana Freeways and Alameda Street); or
- B. A full-service, non-luxury brand hotel (e.g., Le Meridien, Westin, Marriott, Renaissance, Delta, and Sheraton, as well as other full service, non-luxury brands that offers the same level of service as a Westin, Marriott, or Sheraton) within the City of Los Angeles, as defined by the City of Los Angeles Department of City Planning, but excluding the San Fernando Valley (i.e., the areas of Sherman Oaks, Studio City, Toluca Lake, Encino, Tarzana, and Woodland Hills and other areas north of the 101 or 134 freeways).

This MOU and the definition of Property, as used herein, expressly excludes any other hotel not meeting the definitions set forth in this Paragraph 3 as well as the following two (2) hotels: (1) AC Hotel by Marriott Beverly Hills, and (2) The MacArthur.

4. To the extent that the ownership or developer entity of the Property to which the Union seeks to apply this MOU has entered into a neutrality and card check agreement,

memorandum of understanding, or other agreement with the Union relating to the Union's organizing at the Property and classifications covered, then the Union agrees that this MOU shall not apply and the Union's agreement with the owner/developer will control the organizing process at the Property.

5. The parties hereby establish the following procedure for the purpose of ensuring an orderly environment for the exercise by the Employees at a Property of their rights under Section 7 of the National Labor Relations Act and to avoid picketing and/or other economic action directed at the Employer in the event the Union decides to conduct an organizing campaign among Employees. The parties mutually recognize that national labor law guarantees employees the right to form or select any labor organization to act as their exclusive representative for the purpose of collective bargaining with their employer, or to refrain from such activity.

- A. The Employer will take a neutral approach to unionization of Employees. The Employer will not take any action nor make any statement that will directly or indirectly state or imply any opposition or support by the Employer to the selection by such Employees of a collective bargaining agent, or preference for or opposition to any particular union as a bargaining agent.
- B. The Union and its representatives will not coerce or threaten any Employee in an effort to obtain authorization cards, nor shall the Union engage in a campaign to disparage a Property or its management, or their agents, representatives, products, services, or facilities, in an effort to secure the signing of Union authorization cards or to seek support of the Union or its objectives.
- C. If the Union provides written notice to the Employer of its intent to organize Employees at a Property, the Employer shall provide access to the premises of the Property and to such Employees by the Union. The Union may engage in organizing efforts in the employee cafeteria, employee locker rooms, and parking lots of a Property during Employees' non-working times (before work, after work, and during meals and breaks) and/or during such other periods as the parties may mutually agree upon. In exercising the access rights granted by this paragraph, the Union will not utilize former employees of the Employer.
- D. Within ten (10) days following receipt of written notice of intent to organize Employees at a Property, the Employer will furnish the Union with a complete list of such Employees, including both full and regular part-time Employees, showing their job classifications and departments. Within two (2) weeks thereafter, the Employer will furnish a second list of such Employees to the Union, including the addresses of all Employees. Thereafter, the Employer will provide updated complete lists monthly, until completion of review described in Paragraph 5.E.

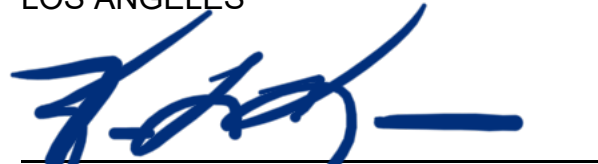
- E. The Union may request recognition as the exclusive collective bargaining agent for such Employees. Lou Zigman, or another person mutually acceptable to the Employer and the Union, will conduct a review of Employees' authorization cards submitted by the Union in support of its claim to represent a majority of such Employees. If that review establishes that a majority of such Employees has designated the Union as their exclusive collective bargaining representative, the Employer will recognize the Union as such representative of such Employees. The Employer will not file a petition with the National Labor Relations Board for any election in connection with any demands for recognition provided for in this MOU. The Union and the Employer agree that if any other person or entity petitions the National Labor Relations Board for any election as a result of or despite recognition of the Union pursuant to this Paragraph, (a) the Employer and the Union will each request that the NLRB dismiss the petition on grounds of recognition bar or, if they have agreed to a collective bargaining agreement covering Employees at the time the petition is filed, on grounds of contract bar, (b) if the petition is not dismissed, the Employer and the Union shall agree to a full consent election agreement under Section 102.62(c) of the NLRB's Rules and Regulations, and (c) the Employer and the Union shall at all times abide by the provisions of this MOU. The Union and the Employer will not file any charges with the National Labor Relations Board in connection with any act or omission occurring within the context of this MOU; arbitration under Section 17, Step 5 of the Agreement shall be the exclusive remedy.
- F. The collective bargaining agreement covering the employees of a Property may be either this Agreement or the collective bargaining agreement between the Union and the hotel nearest in proximity to the Property, at the option of the Employer; provided however, that the bargaining unit at such hotel shall be employees employed in classifications covered by this MOU.
- G. The term of this MOU shall be for the duration of the Agreement or any extension or renewal thereof. During the term of this MOU, the Union will not engage in picketing, consumer hand billing or publicity campaigns (as opposed to organizing literature and publicity directed to Employees), boycotts, or other economic activity directed at any Property covered by this MOU, and the Employer will not engage in a lockout of the Employees at any hotel it operates within the jurisdiction of this MOU. This paragraph will expire with respect to any group of Employees upon recognition of the Union as the representative of such Employees pursuant to Paragraph 5.E; provided, however, if the Employer recognizes any union besides the Union

as the exclusive collective bargaining representative of Employees, or any of them, this paragraph shall terminate immediately and without notice.

SIGNED THIS 19 DAY OF July 2022

UNITE HERE! LOCAL 11

INTERSTATE HOTELS, LLC as agent for
TODAY'S IV, Inc. d/b/a THE WESTIN
BONAVENTURE HOTEL & SUITES,
LOS ANGELES


Kurt P. Petersen, Co-President
Karen Kovach, VP Legal

Memorandum of Understanding on Remodeling

This Memorandum of Understanding on Remodeling ("MOU") is entered into by and between the Employer and the Union to supplement the Agreement. All capitalized terms not defined herein shall have the same meaning as defined in the Agreement.

This MOU is entered into in full and complete resolution of any and all issues relating to the decision of the Employer to suspend operations for remodeling or the effects of that decision. Except as required by paragraph 3 below, the Union and the Employer expressly waive all rights they might otherwise have now or in the future to negotiate or bargain over any decision to suspend operations for remodeling, or any effects of that decision which are or could be subject to collective bargaining. The Union and the Employer each hereby expressly waives any right it might otherwise have now or in the future to negotiate or bargain with the other party regarding the specific agreements embodied herein. When the remodeling is completed, the Employer will resume operations and will offer the recall rights described below to employees who do not elect to receive the severance pay benefits described below.

Because the parties share a desire to continue a stable collective bargaining relationship, which has existed for many years, and in view of the continuity of the hotel's operations after reopening, it is mutually agreed between the parties hereto that:

1. **Severance Pay.** Employees with more than one (1) year of service as of their date of layoff who remain in the employ of the hotel until they are laid off by action of the Employer and who do not elect to be recalled in accordance with the provisions in paragraph 2 below shall receive one (1) week's pay per year of completed service.

A week of severance pay shall be based upon the average weekly pay received by the affected employee from the hotel for a six (6) month period immediately preceding the closure of the hotel, exclusive of gratuities or service charges. Pay for time off (holidays, vacation, and PTO) shall be included in such computations. Employees who were on a leave of absence for any portion of the six (6)-month period shall not have the time spent on such leave of absence counted in the computation of the average pay per week.

Employees shall have a period of not less than ten (10) days to declare in writing at the human resources offices whether they wish to opt for the severance pay benefit package set forth above. If no such declaration is made within the specified time period, employees will be deemed to have waived their right to severance pay and shall be eligible for Recall Rights described in paragraph 2 below. Upon payment of severance, each employee will sign a release (in a form to be discussed by the Employer and the Union).

2. Recall Rights.

- a. **Eligible Employees.** Employees laid off by the Employer in connection with the hotel closure shall be eligible for recall to available positions at the hotel for which they are qualified, provided that such employees (i) have more than one year of service as of their date of layoff, (ii) do not opt for the severance pay provisions set forth in paragraph 1 above, (iii) were not terminated or did not quit their employment with the hotel except for reasons associated with the closure, and (iv) remained available for employment at the hotel until laid off.
- b. **Employee Contact Information.** Eligible employees who choose to be recalled for employment are required to notify the Employer's human resources office in writing of their current address and phone number and of any changes in their address or phone number. The Employer shall only be required to rely on the address and phone number information made available from the employee and which is on file in the human resources office.
- c. **Recall Notices.** The Employer will send letters by certified mail to the employee's last known address notifying employees who are subject to recall of available job openings in the relevant job classification at least thirty (30) days prior to the date employment in the relevant job classification is available. The affected employee will have fourteen (14) days from the date on which she/he receives the Employer's notice letter to accept or refuse recall to employment by responding in person and submitting a written statement to the Employer's human resources office. Employees who are subject to recall and who do not reply in person and in writing to the Employer's notice of recall letter within the specified time period or who do not return to work on the date and at the time specified in the Employer's notice of recall letter will be deemed to have waived their recall rights. The Employer will send the Union a sixty (60)-day written notice of the anticipated date of the hotel's reopening.
- d. **Seniority Credit.** Employees who are recalled shall be credited with their job classification seniority standing up to the point of closure of the hotel for job schedule bidding (shifts of work and days off) and length of vacations. In other respects, said recalled employees will be treated as new hires.
- e. **Vacation/PTO Eligibility.** Recalled employees will be eligible to take the time off for vacation that their prior job classification seniority allowed. However, the Employer has no obligation to pay for vacation/PTO in excess of that which the employee would earn if the employee had been newly hired on his/her date of reemployment.

3. **Medical Coverage.** The Employer and the Union will conduct effects bargaining to determine any continued medical coverage and pension contributions during the closure.
4. **Continuity of Collective Bargaining.** In view of the continuity of representation by the Union, the parties' long-standing collective bargaining history, and the recall rights established herein, the parties agree that if the Agreement expires prior to the reopening of the hotel, the Agreement shall remain in effect until thirty (30) days after the hotel reopens.

SIGNED THIS 19 DAY OF July 2022

UNITE HERE! LOCAL 11

INTERSTATE HOTELS, LLC as agent for
TODAY'S IV, Inc. d/b/a THE WESTIN
BONAVENTURE HOTEL & SUITES,
LOS ANGELES



Kurt P. Petersen, Co-President



Karen Kovach, VP Legal

Memorandum of Understanding on Banquets

This Memorandum of Understanding on Banquets ("MOU") is entered into by and between the Employer and the Union to supplement the Agreement. All capitalized terms not defined herein shall have the same meaning as defined in the Agreement.

1. Whenever a hiring hall banquet server is dispatched for a function to a hotel, he/she will receive a minimum payment at the end of that function to be paid in cash or voucher as follows:

Three hours breakfast/lunch function= \$10.00

Four hours dinner function = \$15.00

Eight hours dinner/dance = \$25.00

Those hotels presently paying more will continue to do so.

2. All banquet servers' (except steady extras) checks will either be mailed to the Union or picked up by a Union runner.
3.
 - A) All checks will indicate the amount of service charge each server receives from each particular function he/she worked and any overtime the employees worked on any particular date.
 - B) Whenever a server works extra covers that Information will be available to the union and the server on a form agreeable to the Union.
 - C) After the completion of a function all servers will receive their paychecks no later than the next succeeding regular payroll.
 - D) At all functions, management shall post the name of the function, the price of the plate, price of the beverage, the menu and the number of people management anticipates will be attending the function.
4. The Union shall send the information of what servers are being dispatched from the hall by fax or transmit said information by telephone.
5. Whenever employees are schedule for an 8-hour dinner/dance such employees will receive their breaks at a time convenient to management.
6.
 - A) The industry and the Union have agreed that when an employee is a no-call no-show such employee shall be barred on the first offense from that hotel for 30 days. On the second offense for a no call-no show, the employee shall be barred for 60 days. For the third offense, the employee shall be permanently barred from the hotel. Discipline for the second and third offenses will only be levied if such offenses occur within 2 calendar years of the first offense.

- B) Any hotel must notify the union hiring hall for any employees barred by the hotel prior to the next dispatch date for that bar to be effective. Otherwise, the date of the barring will become effective on the date that the hotel notifies the Union hiring hall.
- 7. Each hotel has agreed to provide individual employees dispatched from the hall with a locker or the hotel will secure their private property during the time they are working at the hotel.
- 8. As soon as possible each hotel will supply the Union hiring hall with a current list of all employees who are barred and for how long they are being barred.
- 9. The Employer and Union have agreed that all jobs will be called in by 2:00 p.m. on dispatch days.

Whenever possible when a hotel knows they are going to have a major function requiring a large number of hiring hall extras, the Employer will notify the Union hiring hall well in advance of the function date and of the approximate number of servers needed.

The Employer is required first to use its own steady banquet servers and then to use the hiring hall extras, and if the Employer has exhausted both such sources and still needs additional workers, it may use its other workers on a voluntary basis or obtain workers from any other source, providing all such workers will be covered by the terms and conditions of this Agreement.

Servers, bartenders, and bussers, at the employee's request, shall be allowed to work a third function in one day, i.e., breakfast, lunch, and dinner. If the employee incurs overtime in the third function in the day, the employee shall be paid time and a half the base hourly rate.

- 10. A) Anybody who comes to a hotel to speculate will have to sign up on a first come first serve basis whether on an "A" list if they are on the "A" list at the hiring hall or on a "B" list if they are on the "B" list at the hiring hall. These speculation lists will be available approximately one hour before the beginning of the function. The "A" and "B" lists sign-up sheets will be on a form agreeable to the Union.
- B) Further when filling jobs off the speculator lists, all employees on the "A" list will be utilized before moving to the "B" list and as stated above, jobs will be filled from each list in a descending order from the first employee to have signed up.

C) In reference to speculators, the following will also apply

1. The speculators will be on rotation after the last Roll Call number.
2. The speculators will register their names in the speculators' list at Job Dispatcher's office.
3. The Roll Call-booking sheets and speculators lists will be faxed to the hotels.
4. The speculators will not be disciplined for not showing up to the functions, and they will still have the right to work if they are not on the speculators list before any other person the Hotel chooses.

11. The daily speculator sign-up sheets will be kept by each hotel for a minimum of 60 days.

12. **(For Banquet Department Only)**

The distribution of banquet gratuities and/or service charges as determined by the Union is set forth below. Before any significant change is made by the Union in the distribution of gratuities, the Union shall advise the Employer and give good faith consideration to any views the Employer may have on the operational impact of such changes.

15% to Supervision, meaning Maitre'D, Headserver and Captains; 85% to Bartenders and Servers as follows:

A. WHERE A BUS ATTENDANT POOL IS USED

1. BAR ONLY

5% - Bus Attendant pool
80% balance - equal shares Bartenders and Servers
½ share Barback

2. RECEPTIONS: FOOD & BAR

5%- Bus Attendant pool
BAR- remaining 80%
2/3 Bartenders with ½ share Barback, 1/3 Servers
FOOD- remaining 80% Servers only

3. Food Functions (including wine, champagne, etc., served with meal)

5%- Bus Attendant pool

80% remaining - Servers only

4. Coffee Breaks, etc. where no service is involved . . . 85% to Bus Attendant pool.

B. WHERE NO BUS ATTENDANT POOL IS USED

1. BAR ONLY

85% equal shares Bartender and Servers
½ share Barbacks and Bus Attendants

2. RECEPTIONS: FOOD & BAR

Bar - 2/3 share to Bartenders
with ½ share to Barbacks

1/3 share to Servers and Bus Attendants

Food – 85% to Servers and Bus Attendants

3. Food Function (including wine, champagne, etc., served with meal)

85% to Servers and Bus Attendants

4. Coffee Breaks, etc. where no service is involved . . . 85% to Bus Attendants

The practice for tip distribution for some hotels varies from the above formula and those hotels should retain their current practice unless changes are agreed to by the Union.

If there is management change in the Banquet Department, it will be management's responsibility to inform the new management as to how the formula is to be distributed regarding the 85% portion.

13. Hotels will report to the hiring hall positions that come open in the hotel for steady banquets so that those servers coming out of the hiring hall will have an opportunity to apply prior to the hotel advertising on the outside.
14. Hotels will provide the union upon request with the number of hours that each of their steady servers worked for the calendar year.
15. In reference to cash payments (Paragraph 1), disciplining banquet servers and other banquet related issues, the parties agree to find permanent solutions.

MEMORANDUM OF AGREEMENT

This Memorandum of Agreement ("Agreement"), dated for reference purposes as of October 14, 2005, is made and entered into by and between Forward Time Corporation, ("Owner"), Interstate Hotels, LLC ("Employer") and UNITE HERE! Local 11 ("Union"), and shall be binding upon each party's successors or assigns, including any person, firm, partnership, corporation, joint venture, association, or other legal entity substantially under the control of a party hereto, one or more of its principals, or an entity that substantially controls a party hereto.

1. The Owner owns the Westin Bonaventure Hotel in Los Angeles, California ("Bonaventure"). A unit of employees at the Bonaventure is represented by the Union for the purposes of collective bargaining. The unit is more particularly set forth in the Collective Bargaining Agreement presently in effect between the Bonaventure and the Union.

2. For the duration of this Memorandum of Agreement, the Owner shall not make any application to the City of Los Angeles or an agency thereof for any approval necessary to convert any of the Bonaventure's guest rooms to condominiums, timeshares or "hotel-condo" units (defined as hotel-type rooms with limited-time ownership occupancy, the rest of the time rented as hotel rooms with transient occupancy tax paid) except to so convert Bonaventure floors 25-32(a total of 426 rooms), (or any other configuration so long as the total number of guest rooms converted does not exceed 407 rooms) and retail space in the Bonaventure where the employees are not presently represented by union. This conversion will not include the Owner's existing restaurants and banquet service. It is understood that the Union will support publicly the Owner's application for a tract map that conforms to this Paragraph and not object to nor initiate any state, federal, or administrative proceedings, grievance, or other action, in state or federal court or before the National Labor Relations Board or any other administrative tribunal, contesting or objecting to the Owner's application for a tract map, subdivision map, variance(s), and all other necessary entitlements and approvals that Owner may seek in conformance with this Paragraph in order to accomplish.

3. If any part of the real property that includes the Bonaventure is used or converted at any time to condominiums, timeshares or "hotel-condos" by the Owner, or any entity operating facilities for the Owner, (a) the Owner shall, or shall cause such other entity or entities to, use employees at the Hotel in the unit represented by the Union to perform all work pertaining to their existing classifications in such condominium, timeshare or "hotel-condo" operations under the terms and conditions of the Collective Bargaining Agreement and any successor agreements negotiated between the Union and the Employer or any entity operating facilities for the Owner, except to the extent that individual condominium owners clean their own units or independently retain room cleaners, (b) for a period of three (3) years following the effective date of conversion (the date the Bonaventure begins taking these guest rooms out of service) guarantee that the

total number of work hours scheduled for each employee in the housekeeping, laundry, bell, front desk and room service units on the payroll as of 12/31/05 worked by that employee over the previous twelve (12) month period shall not be reduced, provided that this does not obligate the Employer to schedule overtime hours, (c) No severance pay that may be required under the Collective Bargaining Agreement shall be due to any employee who is receiving the hours guaranteed under this agreement until the three year period of guaranteed hours has ended, and (d) the Owner shall, or shall cause such other entity or entities to, incorporate into the Collective Bargaining Agreement a new subsection 3.D, replacing the existing subsection and providing:

In the event the Owner or the Employer sells or assigns its business or substantially all of the assets used in the business, or in the event there is a change in the form of ownership, the Owner or the Employer, as applicable, shall give the Union notice of the planned or proposed change no more than 10 working days after the execution of a binding letter of intent mutually agreed upon between the owner or employer and the prospective buyer and the initial deposit by the prospective buyer, and the Owner or the Employer, as applicable, further agrees that as a condition to any such sale, assignment, or transfer, the Employer will obtain from its successor or successors in interest a written assumption of this Agreement including a promise that the successor or successors shall retain the employees employed in each of the units represented by the Union (subject to changes in the level of staffing) and furnish a copy thereof to the Union, in which event the assignor shall be relieved of its obligations hereunder to the extent that the assignor has fully transferred its right, title, or interest. Notice to the Union shall include, at a minimum, a description of the nature and extent of the change, its effective date, the identities of all parties to the transaction, the effect of the transaction on employees and labor relations, and copies of all parts of the definitive transaction documents showing the above. The Employer shall make or cause to be made all payments that are due or shall be due as of the effective date of the transaction for wages, health and welfare and pension contributions for employees covered by this Agreement, and shall be responsible for accrued vacation payments for each such employee. The Union shall not be required to post a bond or other security as a condition to obtaining an injunction or other equitable relief against a violation or threatened violation of this subsection.

4. In the event the Owner or the Employer sells or assigns its business or substantially all of the assets used in the business, or in the event there is a change in the form of ownership, the Owner or the Employer, as applicable, shall give the Union notice of the planned or proposed change no more than 10 working days after the execution of a binding letter of intent mutually agreed upon between the owner or employer and the prospective buyer and the initial deposit by the prospective buyer, and the Owner or the Employer, as applicable, further agrees that as a condition to any such sale, assignment, or transfer, the Employer will obtain from its successor or successors in interest a written assumption of this Agreement and furnish a copy thereof to the Union, in which event the assignor shall be relieved of its obligations hereunder to the extent that the assignor has fully transferred its right, title, or interest. Notice to the Union shall include, at a

minimum, a description of the nature and extent of the change, its effective date, the identities of all parties to the transaction, the effect of the transaction on employees and labor relations, and copies of all parts of the definitive transaction documents showing the above. The Union shall not be required to post a bond or other security as a condition to obtaining an injunction or other equitable relief against a violation or threatened violation of this subsection.

5. The parties agree that any disputes over the interpretation or application of this Agreement shall be submitted to expedited, final and binding arbitration. Within 30 days following the execution of this Agreement, if the parties are not otherwise able to agree upon an arbitrator, the parties shall request from the Federal Mediation and Conciliation Service a list of five arbitrators who are members of the National Academy of Arbitrators and who have their principal residence in the Los Angeles area. The parties shall, within 14 days of receiving the list, select a permanent arbitrator under this Agreement by alternately striking names from the list. The party to strike first shall be determined by coin toss. The next-to-last name stricken from the list shall be the alternate arbitrator. The permanent arbitrator shall hear and decide all disputes submitted to arbitration unless the permanent arbitrator is unavailable for a hearing within 30 days from the date of submission but the alternate arbitrator is available during such 30-day period, in which case the dispute shall be submitted to the alternate arbitrator for hearing and decision. The arbitrator shall have the authority to determine the arbitration procedures to be followed. The arbitrator shall also have the authority to order the non-compliant party to comply with this Agreement. The parties hereto agree to comply with any order of the arbitrator, which shall be final and binding, and furthermore consent to the entry of any order of the arbitrator as the order or judgment of the United States District Court for the Central District of California, without entry of findings of fact and conclusions of law.

6. This Agreement shall be in full force and effect from October 14, 2005 until three (3) years following the effective date of conversion (the date all these guest rooms are taken out of service).

IN WITNESS WHEREOF, the parties hereto by their duly designated representatives have hereunto set their hands.

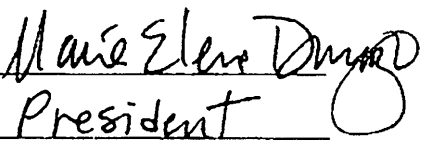
FOR THE OWNER:

FOR THE UNION:

Forward Time Corporation.

UNITE HERE! Local 11

By: 

By: 

Its: _____

Its: President

Date: 10/14/2005

Date: 10/14/2005

FOR THE EMPLOYER:

INTERSTATE HOTELS LLC.

By: 

Its: General Manager

Date: 10/14/05

May 28, 2008

Ms. Karine Mansoorian
Chief Negotiator
UNITE HERE Local 11
464 South Lucas Avenue, Suite 201
Los Angeles, CA 90017

Re: Chinese Banquets

Dear Ms. Mansoorian:

The parties have agreed to replace the side letter regarding Chinese-style banquets, dated March 18, 1998, with the following:

Notwithstanding Section 3B of the Collective Bargaining Agreement, the Union will allow the Employer to use an outside catering company to prepare traditional Chinese meals for up to 26 Chinese banquets per contract year. For purposes of this side letter only, a Chinese banquet is defined as serving a minimum of 100 guests. All non-food preparation work related to Chinese banquets will be performed by bargaining unit employees. This exception to Section 3B is not intended to permit the displacement or reduction in hours of any current bargaining unit employees.

Sincerely,

Michael Czarcinski
Managing Director

Acknowledged and agreed upon:



Karine Mansoorian, Chief Negotiator
UNITE HERE Local 11

TOM WALSH, SECRETARY-TREASURER

May 28, 2008

Ms. Karine Mansoorian
Chief Negotiator
UNITE HERE Local 11
464 South Lucas Avenue, Suite 201
Los Angeles, CA 90017

Re: Purchasing

Dear Ms. Mansoorian:

To resolve the issues arising out of the March 9, 1998 memorandum from Bob Graney regarding purchasing, the parties have agreed as follows:

No pantry employees shall be laid off or scheduled for fewer hours as a direct result of the purchase of pre-cut, pre-prepared, and processed foods. Consistent with this objective, as much pantry work as possible shall be made available and pre-cut, pre-prepared, and processed foods shall be purchased only when business levels dictate and all regular pantry hours are covered due to banquet business volume. The parties recognize, however, that banquet kitchen hours will continue to fluctuate based upon banquet business.

Sincerely,

Michael Czarcinski
Managing Director

Acknowledged and agreed upon:



~~Karine Mansoorian, Chief Negotiator~~
UNITE HERE Local 11

TOM WALSH, SECRETARY-TREASURER

THE WESTIN
BONAVENTURE
HOTEL & SUITES
LOS ANGELES

HOLD CAR SIDE LETTER

The amount of Hold Cars for Figueroa Drive will be eight (8) vehicles.

The procedures for the *Hold Car Program* are as follows:

- Up to (8) Hold Cars will be accommodated at the south end of Figueroa Drive beyond the poles.
- Parking tickets must be issued to every Hold Car guest. Tickets must be time stamped on both parking stubs (the stub given to the guest and the stub for garage record).
- Door Attendant to explain the price for the Hold Car Program to each guest.
- Door Attendant to inform the guest that if their vehicle is left on the drive beyond the 4-hour limit, their vehicle will be re-directed to the Hotel's Valet Parking Garage. Regular garage rates will apply.
- Guest to pay at time of vehicle pick up. Pre-charging our guests is prohibited. Event function or other validation is not applicable to *Hold Car Program*.
- A maximum of (8) vehicles can be held at any given time. It is important to communicate clearly with the guest on the duration of time they will be away from their vehicle.
- At the end of the Door Attendant's shift, they must brief their relief on all hold cars status.
- At the end of the PM Shift, the Door Attendant must move all vehicles to Valet.
- Price Chart for the *Hold Car Program* must be consistent with the pricing on all shifts.

Prices are as follows:	
0 - 1 hour	\$15
1 - 2 hours	\$30
2 - 4 hours	\$40
Vehicles cannot be held for more than 4 hours	

404 SOUTH FIGUEROA STREET LOS ANGELES, CA 90071
TEL (213) 624-1000 FAX (213) 612-4800

VISIT WESTIN.COM/BONAVENTURE OR CALL 1-800-WESTIN-1

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LOS ANGELES

- From time to time, the Hold Car Program will be limited or suspended for large valet functions or other activities on Figueroa Drive.
- For security reasons, the *Hold Car Program* can be suspended at any time.

Memorandum of Understanding Concerning Changes to Food Service

This Memorandum of Understanding Concerning Changes to Food Service ("Agreement") is made and entered into by and between Interstate Hotels, LLC as agent for Today's IV, Inc. d/b/a The Westin Bonaventure Hotel & Suites, Los Angeles (the "Employer") and UNITE HERE Local 11 (the "Union"), collectively "the parties," and shall become part of the parties' current collective bargaining agreement (the "CBA").

WHEREAS, the parties are signatories to the CBA covering the Employer's employees at The Westin Bonaventure Hotel and Suites, Los Angeles (the "Hotel");

WHEREAS, the Employer has closed its Room Service Department and seeks to expand the Hotel's CaféNow food service program;

WHEREAS, the parties wish to minimize the effect of these changes on employees and provide for an orderly transition of employees from positions in the Employer's Room Service Department to other positions at the Hotel; and

WHEREAS, the parties have additionally agreed that the Employer will establish three new job classifications at the Hotel in other departments and make certain other changes to the Hotel's operations.

IT IS THEREFORE AGREED THAT:

1. New Positions at CaféNow: Five (5) Kitchen Expediter positions have been established at the Hotel in its CaféNow department.
2. Bumped Positions from the Room Service Department to CaféNow:
 - a. The Busser positions in the Room Service Department have been bumped to CaféNow and retitled the "Delivery & Attendant" position. There shall be five (5) Delivery & Attendant positions.
 - b. All five (5) of the Operator/Order Taker positions in the room service department have been bumped to CaféNow. The position shall not be retitled.
3. Rates of Pay: The CaféNow positions, each of which shall receive all scheduled pay raises and all other rights set forth in the parties' CBA, shall have rates of pay established as follows:
 - a. Operator/Order Takers at CaféNow shall receive the same rate of pay that has been designated for the Operator/Order Takers position in the Room Service Department, as set forth in the parties' CBA.

- b. Delivery & Attendants shall receive a base rate of pay of twenty-two dollars and fifty cents (\$22.50) per hour as of August 24, 2021, plus a five-dollar (\$5.00) delivery bonus per delivery.
 - c. Kitchen Expeditors shall receive a base rate of pay of twenty-three dollars (\$23.00) per hour as of August 24, 2021.
- 4. Other Changes to Food Service Operations: Three (3) additional cooks shall be assigned to the Lake View Bistro Kitchen: one for the AM shift, one for the PM shift, and one for relief shifts. These assignments shall be made once the Westin a la Carte program goes live.
- 5. Other New Positions at the Hotel: The Employer has established the following five (5) new job classifications in the Hotel, and reinstated another job classification, each of which shall receive all scheduled pay raises and all other rights set forth in the parties' CBA:
 - a. One (1) Housekeeping Dispatch Supervisor has been added to the Housekeeping Department. This position shall receive a base rate of pay of twenty-seven dollars (\$27.00) per hour as of August 15, 2021.
 - b. One (1) Lead Banquet Captain has been added to the Banquet Department. This position shall receive a base rate of pay of twenty-seven dollars (\$27.00) per hour as of May 19, 2021, and shall continue to participate in the Banquet Captains' service charge/tip pool. This position shall receive the same vacation rate (two times their hourly rate) that other Banquet Captains receive, as set forth in the parties' CBA.
 - c. One (1) Senior Lead Steward has been added to the Stewarding Department. This position shall receive a base rate of pay of twenty-eight dollars (\$28.00) per hour as of October 12, 2021.
 - d. One (1) Senior Lead Banquet House Attendant has been added to the Banquet Department. This position shall receive a base rate of pay of twenty-eight dollars (\$28.00) per hour as of December 10, 2021.
 - e. One (1) Senior Lead Cook has been added to the Culinary Department. This position shall receive a base rate of pay of twenty-nine dollars (\$29.00) per hour as of December 10, 2021.
 - f. One (1) Rooms Coordinator position has been reinstated. This position shall receive a base rate of pay that is fifty cents (\$0.50) per hour over the front desk agent wage rate.

6. Any disputes between the parties or regarding the interpretation or application of this Agreement shall be subject to the grievance and arbitration provisions of the applicable CBA, or if no CBA is currently in effect, the parties' most recent CBA.

SIGNED THIS 19 DAY OF July 2022

UNITE HERE! LOCAL 11

INTERSTATE HOTELS, LLC as agent for
TODAY'S IV, Inc. d/b/a THE WESTIN
BONAVENTURE HOTEL & SUITES,
LOS ANGELES


Kurt P. Petersen, Co-President
Karen Kovach, VP Legal

Owner's Letter

Today's IV, Inc.
404 S. Figueroa Street, Suite 516
Los Angeles, CA 90071
Tel: 213-612-4886
Fax: 213-612-4896

Kurt P. Petersen
Co-President
UNITE HERE Local 11
464 South Lucas Avenue, Suite 201
Los Angeles, CA 90017

Dear Mr. Petersen:

Today's IV, Inc. ("Owner") has a long-term lease with Forward Time Corporation ("Lessor"), the fee owner of certain real property, for that portion of Lessor's property that is known as The Westin Bonaventure Hotel & Suites ("Hotel"). Owner has been informed of the recent negotiations between Interstate Hotels, LLC ("Operator") and UNITE HERE Local 11 for a new collective bargaining agreement ("2018-23 CBA") covering a unit of employees employed by the Operator at the Hotel and represented by Local 11. Operator provided to us and we have reviewed a copy of the 2018-23 CBA resulting from the negotiations, including the provisions concerning successorship. Owner hereby agrees to comply with the successorship provisions in section 3 of the 2018-23 CBA, all of which are incorporated herein by reference. Nothing in this letter or the 2018-23 CBA shall create a joint employer relationship between Owner and Employer or serve as evidence of a joint employer relationship or otherwise create or act as evidence of an employer/employee relationship between Owner and any employees of the Hotel. Furthermore, nothing in this letter shall be construed as evidence that Owner is bound to any provision of the 2018-23 CBA, except as explicitly stated above.

Today's IV, Inc.

By: 
Peter Zen, Owner's Representative